COMMONWEALTH OF AUSTRALIA

Proof Committee Hansard

JOINT STANDING COMMITTEE ON ELECTORAL MATTERS

Inquiry into the 2025 federal election

(Public)

THURSDAY, 20 NOVEMBER 2025

PARRAMATTA

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JOINT STANDING COMMITTEE ON ELECTORAL MATTERS

Thursday, 20 November 2025

Members in attendance: Senator Hodgins-May and Ms Campbell, Mr Laxale, Dr Ryan and Mr Rick Wilson

Terms of Reference for the Inquiry:

That the Joint Standing Committee on Electoral Matters inquire into and report on all aspects of the conduct of the 2025 federal election and related matters, including consideration of the following:

- assessment and review of the purported increase in incidents of aggressive conduct, deliberate obstruction, and intimidating behaviour towards voters, political participants, volunteers, and Australian Electoral Commission (AEC) officials;
- potential reform of safety and security arrangements, including consideration of the powers, processes, and capacity of the AEC to manage and address increasingly threatening or disruptive behaviour;
- the suitability and potential reform of measures to ensure universal voter access, including polling booth availability and location, early voting, remote polling, and postal voting arrangements; and
- the suitability of the current authorisation framework and requirements, having regard to the evolution of communication methods and technology.

The Special Minister of State has also asked the Committee to consider the interaction with the following:

- the implementation and operation of the electoral reform passed by the 47th Parliament, particularly regarding the use of money or capital in the most recent election;
- reforms to address the ongoing threats of interference in our electoral system, both foreign and domestic; and
- the composition of the Parliament as a whole, including: the length of the parliamentary term; the potential for fixed terms; and the number of elected representatives relative to the growth in population and the electorate.

WITNESSES

BOLTON, Ms Sue, Private capacity **20**
DULOY, Ms Catherine, Private capacity **20**
FEW, Mr John, Private capacity **20**
HAYES, Mr Matthew, Private capacity **20**
HELY, Ms Susan, Private capacity **20**
HEMMER, Mr Alex, Private capacity **20**
MANSILLO, Dr Luke, Private capacity **15**
ROBERTSON, Dr Graham, Private capacity **20**
SIMON, Mr George, Assistant General Secretary, New South Wales Branch, Australian Labor Party **6**
SMITH, Professor Rodney, Private capacity **1**

SMITH, Professor Rodney, Private capacity

Committee met at 09:31

CHAIR (Mr Laxale): I declare open the public hearing of the Joint Standing Committee on Electoral Matters for the inquiry into the 2025 election. In accordance with the committee's resolution of 4 August 2025, this hearing will be broadcast on the parliament's website, and the proof and official transcripts of proceedings will be published on the parliament's website. I remind members of the media who may be present or listening on the web of the need to fairly and accurately report the proceedings of the committee.

I now welcome Professor Rodney Smith. Is there anything you would like to add to the capacity in which you appear today?

Prof. Smith: I'm appearing in a personal capacity. Although I am a professor of Australian politics at the University of Sydney, I am not representing the views of the University of Sydney.

CHAIR: Thank you, Professor. Although the committee does not require you to give evidence under oath, I should advise you that this hearing is a legal proceeding of the parliament and therefore has the same standing as proceedings of the respective houses. The giving of false or misleading evidence is a serious matter and may be regarded as a contempt of parliament. The evidence given today will be recorded by Hansard and attracts parliamentary privilege. I now invite you to make a brief opening statement before we proceed to discussion.

Prof. Smith: Thank you for inviting me to give some thoughts, and apologies for not putting in a submission. I've been rather busy lately. I note that the committee is looking at the voter experience this time around, which is an important task. Often we might define that in terms of the voter experience on polling day or while voting or perhaps more broadly during the campaign. I can say some things about that, but I'd rather take a broader view and think a little bit about the voter experience between elections and how that relates to elections, and particularly to address the idea of enlarging the Commonwealth parliament.

Here we might think of two contradictory impulses. Often members of the public think there are too many politicians and too much government, but on the other hand there are constant demands for government to intervene in more and more aspects of daily life. Those increased demands reflect back on parliamentarians: demands on elected representatives, legislative demands, demands for better executive oversight over an increasing number of areas, representation and of course the service roles that MPs and senators provide for constituents and other members of their populations.

The Australian population has grown, as we know, since the last time the parliament was enlarged. I think increasing the number of members and senators would help to improve the experience of voters between elections, so the question is by how much should the parliament be increased. I would like to argue for a big bold increase rather than a smaller incremental increase. The argument is based on increased equality, specifically to address the problem of the inequality between Tasmanian electoral districts and those of other states. This is necessitated by section 24 of the Constitution, which guarantees Tasmania and any other original state at least five seats but is exacerbated by the growth in population in states other than Tasmania.

I suggest we use Tasmania as a kind of benchmark for calculating the quota for the House of Representatives electoral districts in the other states and territories. This would be a similar process to the process that occurs in New Zealand, where the South Island of New Zealand, similarly to Tasmania, has a stable or declining population relative to other parts of the country—and I can go into the New Zealand experience if you would like me to. This would give us a quota drawn on the current Tasmanian population, with its five seats of 115,000, for each House of Representatives electorate. The Australian population is currently roughly 27.5 million. If you divide that by 115,000, you get 240 members of the House of Representatives, which seems like a nice number. That would be my argument, to increase the ability of MHRs in particular to do their work. It would increase the number, it would increase equality, it would remove the anomaly of overrepresentation of Tasmania in the House of Representatives, and it would give us a good basis for moving forward from here.

The section 24 nexus provision means that we'd have to increase the number of senators to roughly 120, but I think that also works well mathematically because it would give us, say, six states with 18 senators each and two territories with six senators each, for argument's sake. There would be a 10 per cent quota for the states and a 25 per cent quota, roughly, for the territories, which doesn't lower the quotas terribly dramatically. They'd be nowhere near the level of quotas in most of the state jurisdictions which have upper houses using versions of proportional representation or in the European countries that do that. The alternative might be to remove the nexus, but I think, given the experience in 1967 when that was proposed in a referendum, that might be less likely to occur.

I'll finish by saying that this would bring the populations in Australian House of Representatives electorates to roughly the levels in line with our international Westminster comparators. In the UK, the lower-house quota is on average 107,000, which is not too different from 115,000. In Canada it's roughly 121,000, which is not too different from 115, which is what I'm proposing. New Zealand is more complicated because of the mixed-member proportional system, but if we just look at the general electorates and the Maori electorates the quota is lower but still 75,000—in addition to which there are the MPs elected by the party lists. So it would bring Australia more into line with the UK and Canada. More importantly than the international comparison, I think it would improve the experience of voters between elections because MPs would be able to better serve those smaller electoral districts and there would be more MPs to do the increasingly complex jobs of keeping the executive accountable, doing the committee work, taking legislation seriously and so on.

CHAIR: Thanks, Professor. Could you go into the New Zealand example that you mentioned.

Prof. Smith: Sure. In New Zealand, it's a very complicated system because they use a mixed-member proportional system, but since 1996, for the general electorates and the Maori electorates, the South Island of New Zealand has been guaranteed 16 MPs. The quota is calculated from dividing the eligible members of the population by that 16 to determine the number of general electorates for the North Island, for the other smaller islands of New Zealand, and for the Maori electorates. So the South Island population and the requirement to have 16 MPs anchor the number of MPs in the general electorates for the North Island and are used for determining the number of Maori electorates. I'm not proposing that we'd go through that process every election—it'd be far too complicated—but at least we'd start with a similar basis for calculating the number of electorates for the rest of the country in Australia on the basis of Tasmania.

CHAIR: To clarify, in terms of your figure of 115,000 that you're recommending, is that population or electors?

Prof. Smith: That's population, because the electorates are based on population.

CHAIR: Over there they're based on population, or over here they're based on population?

Prof. Smith: In Australia.

CHAIR: You mentioned the voter experience in between elections. All the evidence we've received so far has been pro increasing the size of parliament, but the sort of public exposure we've had on this has very much been what you said at the start: we don't need more politicians; they don't work hard enough, anyway. We've had some members of parliament say, 'We need better politicians, not more politicians.' How would you explain it to a voter out there—someone that's not engaged in politics or who doesn't engage with their parliamentarian regularly—what's the benefit for them is of an expanded parliament? What does increased representation mean?

Prof. Smith: I think probably the point at which the work of parliamentarians most directly and most obviously touches the general population is in terms of the service role that I mentioned, so I think I would put it in those sorts of terms at the outset. I'd put it in terms of the fact that the Australian population has got much larger. It's more complicated. It's arguably more complex than it was in the past, in terms of different identities, different needs and so on. Smaller electorates allow better connections between parliamentarians and the people.

I think voters do get this, intuitively, at some level. If you look at successful campaigns, certainly the Independent campaigns but also successful campaigns by members of major parties, their candidates run on their understanding of the local electorate. We saw some of that at the last election, when candidates very clearly expressed the view that the reason they were successful was that they understood their electorate and they were able to engage with people. So that's where I would start. I think the argument would be that you can do that much more easily and that the general public can have a much better engagement with politicians, with parliamentarians, if the electorates are smaller and, therefore, the MPs are servicing fewer people.

If you think about some of those huge rural electorates, it would cut down the size of some of those and make them much more manageable. You'd be arguably able to define much clearer communities of interest—although that's kind of a slightly technical claim. But the base claim I would make is not about what I think is important about parliament's role, which is that kind of legislative role and the executive accountability role; it's what ordinary people tend to think of.

At the moment, I and some researchers from a number of other universities are doing some research into political trust in Australia. There's a lot of that research going on. One of the things we did was ask respondents to nominate a politician that they trusted and then talk about the reason they trusted them. It was interesting that, not for all of them but for a significant proportion of them, it came down to a personal contact that had been a positive one. So it was an MP who had either listened or responded to a problem they had or whatever. So, yes, there were people who were saying, 'Yes, I agree with politicians' view on a policy question,' but that personal connection,

that idea that the connection between the MP and the community was a trustworthy one, came through quite strongly in the research.

CHAIR: It's been put to me that, one of the reasons aside from population, is protecting democracy and restoring that trust.

Prof. Smith: Absolutely, yes.

CHAIR: In America it's 800,000 people per congressperson. It's only two senators per state. It's impossible for a congressperson to engage with their community. You mentioned the smaller electorates and the community of interest. How do you feel parliament would improve if members and senators were better able to represent? Would it not make things more fractured in parliament if there are a lot of more MPs representing smaller communities, or do you feel it would enhance the processes?

Prof. Smith: I think it would enhance the processes in two ways. One is one is that there would be greater diversity within any of the party rooms. I'm not talking about the breakdown of the party system. That's another topic. Given that a lot of decisions are effectively made within the party rooms, you'd have more variety of experiences there and more localised input. But to the extent that we are seeing a breakdown in support for major parties and a desire by, at least, some electors—an increasing number of electors—to vote for non-major-party candidates and to vote for Independents, it would directly increase that connection. The smaller electorates would increase that connection. But I don't think that's a necessary part of the argument. The point is that, whether it's through the party room or through an Independent or a single-member party representative representing an electorate, if you make the electorate smaller you can get a stronger capacity for those MPs to connect with the electorate.

CHAIR: You've mentioned having six senators per territory.

Prof. Smith: Yes.

CHAIR: That would be six in the ACT and six in the Northern Territory. In the evidence we've received so far, I think most have said six for the ACT, but there's been a differing number for the Northern Territory, primarily on population. Would six senators in the Territory not give that overrepresentation that you say in your evidence exists in Tasmania?

Prof. Smith: I'd be more worried about that if the only house we had was the Senate. Part of what I'm trying to do is correct the inequality in the House of Representatives. The principle of the Senate representation is always that the size of the state doesn't matter. I think you can extend that to the territories. I don't see any real issue with that. I think that principle is one that's worth keeping.

CHAIR: Do you think the territory senators should switch to the same cycle as state senators, where it's a six-year term and there are half-Senate elections each time, rather than being up for election every time?

Prof. Smith: Yes, I do.

CHAIR: What are your thoughts on fixed terms and potential four-year terms?

Prof. Smith: I think fixed terms generally are a good idea. As you know, we have fixed terms in a number of states. We've had a long experience with them. They tend to work reasonably well. It does take away one guessing game from the media—the guessing game of when the election is going to be held—but I don't see that as a bad thing I think it allows electoral commissions to plan elections around a known election cycle. It gives voters some kind of idea of when the election is coming up, and it prevents the kind of snap election called to get a government out of trouble or when a government anticipates it's becoming less popular, so it goes to the electorate before it becomes entirely unpopular. It prevents that kind of move, which I think is a good thing in terms of accountability.

CHAIR: Do you think terms should be extended to four years?

Prof. Smith: I'm a bit agnostic on that. I like short terms. On the other hand, I think the experience of moving to four-year terms in the states generally hasn't made them less democratic—if I can put it that way—in any obvious sense.

Mr RICK WILSON: What are your views on optional preferential voting? Some of the feedback that I've received is that people don't like being forced to vote for parties that they don't want to vote for at the end of the numbering process. Is that something you've given any thought to?

Prof. Smith: I have. I think it's a longstanding critique of full preferential voting that you have to give some kind of preference to a party that you don't like. In practice, most preferences that people give to a party they don't like don't actually make any difference to the count. I think there's sometimes a misunderstanding that I noticed

some people putting forward during the last election campaign, particularly after the result, that the preferential voting sort of skewed the election result unfairly for that reason. I think a lot of those claims are unjustified.

The New South Wales experience of optional preferential voting is one in which the elected candidate often doesn't receive a full majority of votes or the votes of a majority of voters. So if you're prepared to move in that direction, as long as you don't see that as a problem, moving to optional preferential voting doesn't make a great deal of difference. Even under optional preferential voting, voters in New South Wales, by and large, indicate more than one preference. But if you want to focus on individual freedom just to vote for who you particularly like, then optional preferential voting is a good system. Having said that, just to repeat my first point, full preferential voting doesn't usually result in you electing somebody who you don't like.

Mr RICK WILSON: That was only part of it. I perhaps didn't explain it as well as I should have. What about the difference between ineligible votes in New South Wales, where there is optional preferential voting, and the federal scene? Is there a is there a noticeable difference in the number of ineligible votes at the federal scene, where people are not numbering the full range of options?

Prof. Smith: Yes. This has been a problem for quite some time in New South Wales, particularly with the expansion in the number of candidates. When optional preferential voting was introduced in New South Wales in the 1980s, contests were much simpler at both state and federal levels. Consistently, since then, we've seen New South Wales as the state in which more informal votes are cast at the federal level than in other states. That's not because people in New South Wales are stupid or stupider than people in other states and territories. It's because of that confusion between optional preferential voting used at the state level and full preferential voting used at the federal level. It does particularly affect electorates with higher proportions of CALD voters—voters for whom English isn't their first language and for whom the instructions may not have been communicated in their first language. There are some electorates that it particularly affects, but, across New South Wales, there is an effect. If we were to increase the use of optional preferential voting, for example, in other states, or at the federal level but not in the states, I predict you would get similar problems. If you introduced it at federal level, you'd start to get problems in the states that use full preferential voting now because some people, at least, would take the cue from the federal experience and apply that to their state voting. I think having that inconsistency is a real problem.

Mr RICK WILSON: Okay. That's all I've got.

CHAIR: Dr Ryan?

Dr RYAN: Thanks, Chair. I don't have any questions.

CHAIR: Ms Campbell?

Ms CAMPBELL: No, I'm okay. Thank you.

CHAIR: In the past, parliament has been increased in big whacks, which is what you're recommending again—that big leap in numbers. Would there be any merit in having legislation that ties the number of seats and senators to population that gets reviewed every five years as a matter of course? Or do you feel like the best process is to have that flexibility for the parliament to increase it or decrease it as they see fit?

Prof. Smith: I am arguing for a big change. To me, the idea of having that regular review and adjusting the numbers accordingly is important. I think there's also some merit in keeping electoral boundaries as fixed as possible for that community-interest argument that I was suggesting. If you move electoral districts around too much, then you start to weaken and erode that connection between the people and parliamentarians. People start to get confused about what it means to be represented in a particular electoral district. The current system of course mandates that we have redistributions, and there have to be redistributions, but I think I'm less keen on redistributing on the basis of small increases in population. I think a review that occurs every couple of decades is probably sufficient.

CHAIR: Thanks for your evidence today, Professor Smith. We're right on 10 o'clock, which is really good. Is there anything else you wanted to add before we close your part of the hearing?

Prof. Smith: No, I don't think so.

CHAIR: That's all good. We've got everything. We really appreciate it. And, as I said earlier, if you did want to write a submission when you've got the opportunity to, please do so. I think the evidence you've given today has been really great. Perhaps you might want to touch on some of that research you're doing in regard to trust and interactions with parliamentarians.

Prof. Smith: Sure.

CHAIR: If you've been asked to provide any additional information, would you please forward it to the secretariat by Friday 5 December. You'll be sent a copy of the transcript of your evidence and will have an opportunity to request corrections to any transcription errors. Thank you for your time this morning.

Prof. Smith: Thank you very much.

SIMON, Mr George, Assistant General Secretary, New South Wales Branch, Australian Labor Party

[09:58]

CHAIR: Welcome. Although the committee does not require you to give evidence under oath, I should advise you that this hearing is a legal proceeding of the parliament and therefore has the same standing as proceedings of the respective houses. The giving of false or misleading evidence is a serious matter and may be regarded as a contempt of parliament. The evidence given today will be recorded by Hansard and attracts parliamentary privilege. I now invite you to make a brief opening statement before we proceed to discussion.

Mr Simon: Thank you, Chair—and can I open by wishing you a very happy birthday. It's your 42nd birthday. I'm very privileged to be here—

CHAIR: So am I. It's great.

Mr Simon: seeing you, and the rest of the committee, on this very important occasion.

I want to thank the committee for giving me the opportunity to appear on behalf of New South Wales Labor. As the assistant secretary of the New South Wales branch of the Labor Party I intend to mostly make contributions on prepoll and polling day booth related matters. I know that the committee is exploring all kinds of policy areas, such as expenditure, voting methods, electorate sizes and such. The national secretariat of the Australian Labor Party will make a submission on broad policy matters and will speak for the state and territory branches on those matters. I believe I can provide a more granular perspective on booth related matters.

The New South Wales Labor Party ran candidates in every lower house seat in the state and six Senate candidates in the 2025 federal election. We staffed almost all polling booths in the state as part of the federal election, and we have the following three observations to submit to the committee for consideration when drafting recommendations out of this inquiry.

The first is that we have seen—and I know the committee has heard evidence to this effect from others—a real proliferation in third-party actors, particularly at a polling booth level, in the 2025 election. Third-party campaigns and third-party actors have been a common feature of electoral campaigning for a long time, and, along with established political parties and established campaigns, there have been a set of uncodified norms of behaviours at polling booths. Some of those are codified by the AEC. Many of them are not. In our view, new entrants into the polling booth space in the 2025 election really pushed the boundaries of what is allowable at polling booths and upended the codified norms of behaviour by volunteers and others at polling booths.

I want to provide some examples of where we think some of those norms that have developed over time are now being upended. The first is the number of volunteers a party or third-party actor have at a polling booth. On the weekend prior to the election, so the Saturday of pre-polling, I was receiving updates from our local volunteers in many seats across the state that up to 30 people were staffing on behalf of the Liberal and National parties at prepoll booths. It was widespread. We had reports from electorates as far-flung as Eden-Monaro, Gilmore, Shortland, Macquarie, Calare, Reid and Richmond. At all of these places there were prepoll booths with 20 to 30-plus volunteers for the Liberal and National parties. It has since been alleged through multiple media outlets that this was the weekend that the Plymouth Brethren really mobilised on behalf of the Liberal and National parties. And the scale of 'volunteers' at polling booths from that day never really let up, right up until polling day.

The second example of this was the amount of signage at a booth and the time that a polling booth is, for want of a better term, 'set up' by candidates, volunteers and political parties. I'm going to have a little more to say about that separately later in my opening.

The final example that I want to put to the committee is that volunteers are, in my view, normally very conscious of their role in creating and setting the election voting experience for voters and AEC staff. Along with the scale of volunteers allegedly put by the Plymouth Brethren and others, there was clearly a problem with how vociferously they were canvassing voters as they entered booths or waited in lines. Voters reported to our volunteers of feeling intimidated and harassed at the new scale of canvassing that was occurring in this election. Certainly, that experience is being borne out by the evidence provided by the acting commissioner of the AEC to this inquiry.

I want to speak briefly to the issue of signage and polling booth set-up times. It is common practice that, in hotly contested seats, candidate and party volunteers will set up an election day booth the evening prior to election day to try and take advantage of the best positions for signage. In many areas this is the stuff of folklore. It's also common that local party volunteers will agree to arrangements amongst themselves that take some of the competition out of that process by nominating a set-up time for all parties.

The timing and scale of booth set-up in the 2025 election was unprecedented in our experience. In many target seats, we had prepoll booths being set up the night before the opening of prepoll. As well as the timing of the set-up of polling booths, there was the volume of signage that was on display. In one prepoll booth in Bennelong—Saint Anne's in Ryde—we observed over 100 A-frames for the Liberal candidate at that single booth.

As you can imagine, the competition for signage and the timing of set-up creates an intensity amongst volunteers that also is a recipe for volatility. As a party, and as the New South Wales branch of the party, we have a duty of care to ensure the safety and wellbeing of our volunteers and members. It's becoming increasingly hard to guarantee that safety in a climate where people are setting up polling booths in the middle of the night, driving between polling booths to guard them, having people rip down their materials and trying to put them back up. We're actually seriously concerned about being able to deliver on our duty of care to volunteers, staff and members who are participating in campaigns.

We also assert that the volume of signage has added to the degradation of the voting experience for ordinary voters. When combined with the more intense canvassing of voters, voters are getting a full sensory experience when they turn up to a polling booth. That adds to the intimidation and harassment that they're feeling.

We suggest that the committee consider a recommendation that limits the volume of signage per candidate at a booth. We know that this has been successfully rolled out in a number of other state and territory jurisdictions.

Finally, I want to speak to the enforcement capacity of the AEC in this new climate. It's clear that the proliferation of third-party actors is stretching the enforcement capacity of the AEC. As an example of this, very early on in prepoll voting, we observed the rollout of polling booth material authorised by one M Jonas in Melbourne. The material was nationwide. It included pamphlets, mobile billboards, corflutes, television advertising and digital advertising. It was concentrated in marginal seats. It was highly coordinated, and it would have required hundreds of thousands of dollars of financial resourcing. All of the material carried anti-Labor messaging, and most of it was incorrectly authorised as per the AEC guidelines.

As early as 17 April, the Queensland branch of the party had made a complaint to the AEC about the material that was authorised by one Morgan Jonas. Almost daily after that, there were complaints to the AEC from either New South Wales Labor, the national secretariat or other branches of the party, but none of it resulted in the material being removed. In fact, daily, the volume of material just simply increased, and in our view the AEC did very little to take action to either injunct Morgan Jonas or take other actions within its power to remove that material.

Just for comparison, in the electorate of Fowler, the Labor Party had put up corflutes that the AEC deemed were misleading. We accepted the ruling, and we had our corflutes amended within hours of that ruling, before a voter would've even seen them by the time we got to election day.

We recommend that the committee consider recommendations that increase the enforcement capacity of the AEC to keep pace with the proliferation of third-party actors at a polling booth environment. I'd be more than happy to take questions from the committee now, Chair.

CHAIR: Thanks, Mr Simon, for your evidence. I might start with your final comment about enforcement. From the evidence we've heard to date, it seems the AEC are pretty hesitant to jump in on whether or not an ad is misleading. Could you go through the example in Fowler so that we can understand why they acted so quickly. You used the word 'misleading' there. I'd be interested to understand why they jumped in in Fowler but didn't do so in other areas where there was potentially misleading material.

Mr Simon: In relation to Fowler, there was a piece of material—it was a corflute, I believe—that had the phrase 'Vote Dai Le. Get Peter Dutton'. I would suggest that it was a piece of material that was developed by a very enthusiastic local volunteer. The AEC contacted us following a complaint, we understand, from Dai Le's campaign, and we subsequently amended the materials to say 'Vote Dai Le. Risk Peter Dutton'. As to why that was acted on so quickly compared to the Morgan Jonas example, I couldn't be sure, but I do have one theory that I think is worth putting to the AEC, which is that, where established major political parties are getting authorisations incorrect or have other issues, they are held to a higher standard than third-party actors. I think that that's fair enough. We're established players, we're highly resourced and we've got established channels of communication with the AEC, which means that we should probably be held to a higher standard. That said, I believe the Morgan Jonas example was really treated like it was just a fringe actor in an individual seat who is held to a much smaller standard. But, when you look at the Morgan Jonas material in its full quantum, you see it was national, it was coordinated, it was targeted into marginal seats and it was sophisticated, and it should have been treated like you would treat a major political actor in the system. I think that's a cultural problem within the AEC as well as a problem with the tools they have available for enforcement.

CHAIR: The AEC made it very clear that, in terms of truth in political advertising, they don't engage and don't want to engage. You may not be aware of it, but what was it that they found? Why did they get involved with the Dai Le example? Was it because it was about an electoral matter rather than an opinion? I'm sure Dr Ryan might give some examples from her seat, but I recall some evidence showing that some members of the public thought it was misleading to conflate teal Independents with the Greens. That seems to be what the AEC have done here. They're stepping in on a conflation between Dai Le and Peter Dutton, but they're not doing that in other areas. Did they give you reasons why they did that? Was it because of the word 'get'—'Vote Dai. Get a Liberal'? Was it about the electoral matter?

Mr Simon: Having not been intricately involved in the Dai Le matter, I can say this. It was the night before the election, so the materials were going up at polling booths set up early on. It was a pretty frantic period. I suspect there wasn't a lot of engagement between the party and the AEC on specific reasons and all of those kinds of things, and the AEC made a call. There's not a lot of time to appeal that at that point in time. We copped that it was probably a bit of a stretch to say it in that way, so we just decided to print the stickers and fix it within hours. There is a difference with the Jonas material. We don't assert that it should have been taken down because it was misleading. So conflating the Dai Le and the Jonas material in the sense of the content is not correct. The Jonas material was incorrectly authorised. In the first instance, it just said 'Morgan Jonas, Melbourne'. It didn't have a full address. Then, even when there was some rectification to put on a specific address, it was not an address where anyone was available. As far as we could tell, it was just some empty office somewhere. Also, it happened to be the headquarters of the Freedom Party of Victoria. Despite that, the Freedom Party should have appeared as part of the authorisation and didn't. So our view is that the Jonas material should have been taken down. It had a whole bunch of heinous stuff on there, including in your electorate, Chair.

CHAIR: I remember.

Mr Simon: Our view is that the AEC needed to intervene, not on the substance of the material in Jonas but on the fact that it was incorrectly authorised. In our view, it probably had the tools at its disposal, including the ability to injunct the material. Because it had been occurring over 10 days leading into an election, it wasn't rushed in the same way that you might have had with the Dai Le material. There was plenty of opportunity to do it, and it wasn't done.

CHAIR: Did they give you any reasons why? Are you aware of any reasons that were given to New South Wales Labor or other branches about this material?

Mr Simon: No. I think there was a hesitancy about injunction, as far as I understand. But in the main it was the national secretariat of our party that ended up taking carriage of the complaints process and the engagement with the AEC. I think at the end of it we all felt like not much had happened.

CHAIR: You mentioned the proliferation of third-party actors at the polling booth level, but you rightly also say that third parties have been a part of the electoral process for a long time. I think of GetUp. I think of the union movement. I think of local climate groups. You and the evidence we've received have said this. Even the AEC have said that there are about 130 new entrants. From an organisational level, what was the impact of that on party volunteers at the booth level? My fear—and I've said this publicly, I say it privately and I think it's very much part of our terms of reference—is that, if that sort of intensity is repeated and becomes the norm, it will degrade our democracy. It will stop participation by volunteers and, in extreme examples, by voters. We've received evidence of that nature to date so far. Is that something you're concerned about? You said you were able to staff every booth across the state. Did you get any feedback that this was the last straw or that this was something that was wildly unpleasant and people are thinking about it again?

Mr Simon: Absolutely. I would say the 2025 election campaign was unprecedented in terms of both the volunteer and the voter experience at a polling booth. We are particularly concerned about our ability to meet our duty of care to volunteers. We go to a lot of effort to train our volunteers on appropriate behaviour at booths both because we believe that's the right thing for the voter experience and because we believe that it's actually the best way of persuading people. Normalising good behaviour is actually one of the best ways to persuade people who might be undecided at a polling booth. We would certainly be concerned for the safety of our volunteers if the intensity of the polling booth experience maintains 2025 levels or gets worse. It's hard to see how, without some regulatory intervention, it won't get worse. I think, at this point, you can't rely on uncodified normative behaviours between volunteers, because you've got new entrants into the system who clearly aren't interested in any of those norms that have been established.

We'd be particularly concerned about the safety of women at polling booths. Many of the complaints that were coming through to us from our volunteers were from women who felt intimidated, particularly by large men who were establishing quite a physical presence in their space, standing in front of them, getting very close. All of

those things mean that we are very concerned about our ability to staff booths. More importantly, we'd be concerned about what this is doing to the experience of voters at polling booths and to staff at the AEC, who are really the first port of call for us in regulating more of that behaviour.

CHAIR: You touched on the rollout of large numbers of members of the Plymouth Brethren church. I recall counting 36 members in Liberal party shirts at a pre-poll at St Anne's in Bennelong. From media reports—and I recall a list you read out in your evidence—they seemed to all be in contested seats between members of the Liberal Party and government or Independent members. I want to ask whether you feel that was coordinated in any way. From your experience as a party official, understanding how to roll out state-wide and national campaigns, could that have happened just because local volunteers wanted to turn up?

Mr Simon: Thanks for the question. There is no way that could happen without a serious level of coordination. I've spent over 20 years at this point running local campaigns for the party, and staffing polling-booth rosters is one of the most difficult things you can do in a local campaign. It requires a high level of sophistication and a high level of coordination. There is no way that you could have over 30 people staffing a booth in target seats one week before election day at a pre-poll booth without a high level of centralised coordination. I've read all the media reports. I've seen the social media recordings of Plymouth Brethren briefing members about volunteering. I think, based on all of those, my judgement is that, yes, the Plymouth Brethren were coordinating on behalf of the Liberal and National parties in a cluster of target seats for them between Labor and Liberal, or Labor and National, or Independent and Liberal or National.

CHAIR: You mentioned Morgan Jonas having a national campaign across all mediums of electoral matter, and the large numbers of Plymouth Brethren. I'm not saying you're a lawyer, but, in your understanding, should the scale of some of these third-party actors' involvement trigger disclosure requirements to be a bit more transparent?

Mr Simon: Yes. My understanding of the disclosure requirements means that I'd be very surprised if none of these organisations hit a disclosure threshold. I read the *Hansard* of the evidence from the acting commissioner and their process for notifying people who may have triggered the threshold. The Morgan Jonas material—there's no way you could do an objective assessment of that material and not determine that it's met the disclosure threshold. Television advertising on Kayo Sports, digital advertising and mobile billboards nationally at scale all hit the threshold, in my view. Likewise, I've seen the reports of Plymouth Brethren flying people to Darwin and all kinds of coordination that, in my view, seems difficult to marry up with not being required to disclose as a third party.

CHAIR: I'll stop there for now. I'll go to Mr Wilson.

Mr RICK WILSON: Thank you, Mr Simon. You said that you've been involved in campaigns for 20 years and you detected a level of coordination. If you were coordinating a group of volunteers, would you send 36—I think that's what the Chair counted—to a particular polling booth, or would you spread those resources over the many booths that you would be required to cover?

Mr Simon: It would depend on the size of the polling booth. I certainly don't think it's a great use of resources to send 30 people to a prepoll booth on the Saturday before the election. I think that's probably overkill, but people make different judgements—

Mr RICK WILSON: So that would indicate—

Mr Simon: in the intensity of an election.

Mr RICK WILSON: That would indicate enthusiastic volunteers as opposed to some level of coordination I would have thought. Within the Labor Party, do you vet your volunteers? Do you question them on their religion or the church they attend—that sort of information? Do you elicit that from your volunteers?

Mr Simon: No.

Mr RICK WILSON: Okay. If a group of people turn up and say they'd like to volunteer, do you welcome them with open arms and send them off to a polling booth somewhere?

Mr Simon: Most likely, yes. We try and recruit volunteers. If those volunteers turned up at a booth and were acting particularly aggressively to other volunteers or to voters, we'd go to great lengths to get those volunteers off the polling booth.

Mr RICK WILSON: That's a nice segue into my next line of questions. What action does the Labor Party take against its members or supporters when there are reports of poor behaviour at polling booths?

Mr Simon: It would depend on the circumstance. It would range from removing them from that polling booth for the day to, if it's seriously aggressive or violent behaviour, moving on their membership of the party.

Mr RICK WILSON: It was reported in the *Sydney Morning Herald* on 30 April that a Labor volunteer made shocking homophobic slurs towards Liberal Party volunteers, and I've seen the video. What action was taken in that case?

Mr Simon: I'd have to look at the specifics of that case, but I presume that the person you are speaking about didn't appear at a polling booth for the remainder of the campaign.

Mr RICK WILSON: Are they still a member of the Labor Party? You didn't investigate? This incident was reported in both the *Sydney Morning Herald* and the *Age*. You didn't look into this case?

Mr Simon: I'd have to take that on notice.

Mr RICK WILSON: If you could please get back to me with an outcome. You mentioned intimidation of people on polling booths. These were shocking slurs our LGBTQI community, and I'm not sure that I've seen decisive action by the Labor Party on this, but if you could get back to me on that I'd very much appreciate that.

Mr Simon: I think, to provide context to that, election campaigns are tough contests. Emotions are high, and I think that we could spend all day pointing to specific anecdotal examples of bad behaviour. I think—

Mr RICK WILSON: Which is why I want the Chair—

Mr Simon: Sorry, could I just be allowed to finish, Mr Wilson? You have asked some questions, and I'd like to answer them. We could spend all day pointing to specific anecdotal examples of bad behaviour. For context, the purpose of my evidence was to point to the scale of the 2025 election, particularly the scale of the number of volunteers and the aggression that occurred through what we understand is the Plymouth Brethren acting on behalf of the Liberal and National parties. I think scale is important here rather than granular detail about who did what.

Mr RICK WILSON: Well, I'll respectfully disagree with you. There have been a lot of generalised accusations made about people feeling intimidated. I haven't seen many specific examples. If having more people on a polling booth than the other side is intimidation, that's a new one for me. Every party tries to mobilise as many volunteers as they can to give the impression that they are well supported. This is certainly a new angle on manning polling booths. I haven't seen much specific information about this alleged intimidation, but I'm receiving reports of intimidation going the other way, so I want to get that on the record, if I may.

CHAIR: Dr Ryan?

Dr RYAN: Thanks very much for your evidence this morning. I'm interested in the Morgan Jonas example that you gave. Firstly, the images and the advertisements that were sponsored by Morgan Jonas—can I ask whether they were, in your opinion, AI generated?

Mr Simon: I'd have to go back and check the specific examples to be able to say if they were AI generated or not. They were certainly heinous, and they probably did require some digital and graphic design manipulation. Whether that was AI or not, I don't know.

Dr RYAN: I ask that because the advertising sponsored by Morgan Jonas in the electorate of Kooyong was clearly AI generated and pretty offensive. When you say it's 'heinous', have you been able to provide some examples of that to the committee? Are you able to tell us why it is that you describe it in that way?

Mr Simon: I'm happy to provide some to the committee on notice. The materials were obviously negative materials, which are a common feature of election campaigning. I think some of them were deeply personal to the character of individual MPs. I think some of the imagery of them, and the way it'd been doctored, was particularly disgusting. I'm happy to provide examples of that to the committee on notice.

Dr RYAN: I think that would be really helpful. Morgan Jonas is publicly a representative of the Freedom Party, and we know that the Freedom Party—and this is a matter of public record—received funding from ADVANCE during the 2025 election. We also know—again, this is on the public record—that ADVANCE received funding from the Cormack Foundation, which is the third party that financially supports the Liberal Party. I want to ask you about this. As a representative of the Labor Party, what is your feeling about these somewhat convoluted funding streams from the political parties or their third party funding arms to other organisations which then campaign on their behalf.

I ask you that because I agree with you that limitation of signs and signage around polling booths could be helpful. But one of the concerns that independents and small parties have is that, if there's an equal number of signs allotted to each third party, that the parties will then just evolve limitless numbers of third parties which will then have signage of their own, which will result in the same problem effectively being present at polling booths.

Mr Simon: Sorry. Could you clarify the question?

Dr RYAN: It's clear that the Liberal Party has been funding in 2025. The Liberal Party has funded third party organisations to, effectively, campaign on its behalf. Those are organisations like ADVANCE and organisations like the Freedom Party. If we were to limit advertising at polling booths and at prepoll sites to, say, 10 signs per political party or political candidate, what's to stop the parties from just having unlimited third-party groups that they sponsor so that they can still overwhelm polling sites or prepoll sites with advertising which is supportive of them?

Mr Simon: I suppose that's a question for the committee to explore in terms of recommendations of how you would implement a signage limitation. I think, taking your example to its extreme, yes, it does feel possible that, if you had a thing that said there were limitations on political actors and political parties doing signage, you'd see a proliferation in third-party actors for signage. I've got to say that, in my experience, despite the fact that there's this kind of never-ending, escalating warfare about polling booth signage, I'm not sure it's really shifting the dial in terms of how people are voting. It would probably be quite a wasted expense of resources to set up a whole bunch of third parties just to get signage up on a polling booth. It's certainly not something I'd be recommending as a representative of the Labour Party in a campaign. Setting up third parties just to get more signage up at booths feels like probably a waste of resources. I think one of the things I'm particularly determined to try and rectify is really taking a lot of the competition out of polling booth set-up and positioning of signage at polling booths. I just think no political actor can guarantee the safety of their volunteers in the current intensity that's being exhibited at polling booths.

Dr RYAN: Agreed. Did you have any suspicions at any point about the people being involved in polling site set-up or people campaigning at the various polling sites being effectively paid to do that? Was there any reason that you had to suspect that that was being done by people employed to do it?

Mr Simon: I had no reason to believe people were being paid to do it. Well, I didn't have evidence that people were being paid to do it. I go back to my experience on the Saturday of prepoll before the election because that really, for me, was the moment that the scale just felt very unprecedented. At the time, I had a few messages in different chat groups, like, 'We think it's Plymouth Brethren at this booth.' When you're in the heat of the campaign, you hear lots of rumour and scuttlebutt and you try to sift through what's real and what's not. Honestly, when I first heard it, I thought it was ridiculous. I thought it was all just one of those ideas that manifests in a particularly enthusiastic volunteer. But then I just kept hearing it more and more throughout the day from different areas. I actually didn't truly believe it until I saw some of the social media from a particular ex-member of the Plymouth Brethren who laid it out in a pretty sophisticated way.

To go to your question about whether people were paid: I don't know. But I think that adjacent to that is whether people were compelled in a way that they might not normally be to volunteer in an election. I've seen the same evidence that you have in media reporting and social media, and it convinces me that that is certainly the case.

Dr RYAN: Thank you.

CHAIR: Ms Campbell.

Ms CAMPBELL: Thank you, Mr Simon, for giving evidence. How did you come to know they were the Brethren?

Mr Simon: We came to know mostly from media reporting. I certainly had volunteers putting that to me during the course of that Saturday. The moment I would say that I knew was when we had media reporting through the course of the week leading up to the election, verifying that members of the Plymouth Brethren were being mobilised. Secret recordings were being exposed of the Brethren briefing people to volunteer on booths. I'd say it was in the early parts of the week leading up to the election that I came to know it in a way that I could verify.

Ms CAMPBELL: What experience or what behaviours did the volunteers experience that made them believe they were the Brethren in the first place, prior to the media reports?

Mr Simon: The kinds of behaviours that were being exhibited were—it didn't seem like these people were particularly engaged in the political environment. People who tend to sign up to volunteer at a polling booth are highly engaged in politics and have a lot of knowledge about it. They know who the local member is. They know the other volunteers on a booth. They weren't exhibiting behaviours that indicated they knew a lot of those things. Also, the behaviours people reported through to us were very kind of gendered—men being quite vociferous about their canvassing and women taking a more backwards role in campaigning. They were the kinds of behaviours. In particular, the aggression of the men towards our female volunteers was very pronounced and was reported quite regularly.

Ms CAMPBELL: Was there anything in their behaviour that suggested they were organised?

Mr Simon: Yes, absolutely. They would all tend to meet prior to the opening of a polling booth. There would be 20 or 30 people gathering before the booth opened, ready to go. They'd all tend to arrive at the same time, in a small number of cars. As I mentioned earlier, the sheer scale of the number of people at the booths suggested to us that there had to be a level of coordination. As a former state secretary, Ms Campbell, you would also appreciate that it's pretty hard to get 30 people to a polling booth through enthusiasm alone. That requires a high level of coordination.

Ms CAMPBELL: Was the language they were using on the booths when communicating with either your volunteers or the voters consistent?

Mr Simon: Not that I recollect, Ms Campbell. There was no suggestion that there were any particular forms of communication at polling booths at the time. I saw some reporting on those kinds of behaviours, but that might be a better question for someone else who is more across that.

Ms CAMPBELL: Thank you. I'll go to the Jonas material. We've had evidence given previously in this committee about one of the barriers to the removal of that kind of material being the identification of the people who had essentially been putting it up. Did the AEC indicate whether they were able to identify Mr Jonas?

Mr Simon: Again, that's probably a better question for our national secretariat who was more engaged in the discussions with the AEC on that. However, my understanding is that the AEC was engaged directly with Morgan Jonas and that it was accepted that the material was not authorised correctly, but the enforcement—either the willingness or the capacity of the AEC to go to court and injunct the material was just not there.

Ms CAMPBELL: What do you think the most effective methods of enforcement for signage would be in that context—not booth signage but unauthorised material that appears where a person either can't be identified or indeed can be identified but refuses to take it down?

Mr Simon: I think that the tools are there at the disposal of the commission currently. They can go to court and injunct material. They have done that before—they've attempted to do that before, on occasions been successful and on other occasions been unsuccessful. Our view on the Jonas material was that it was pretty cut and dry and should have been the matter of an injunction. As to other methods, I think that's probably a question to explore further with the submission from our national secretariat and further discussion amongst this committee.

Ms CAMPBELL: You've talked a bit about aggressive conduct. Can you give us some examples of aggressive conduct, particularly the aggressive conduct that you saw from third parties that you referred to earlier.

Mr Simon: When you're at a polling booth, you're usually standing to try and get the best positioning to hand out your how-to-vote card to particular individuals. Most of the aggressive conduct we had complaints about really went to the proximity of people when you were standing and handing out your how-to-vote card, particularly men standing over women or standing directly in front of them. That was a very common feature of the complaints we were receiving from our volunteers. That's, I think, the starting point of the least aggressive conduct. It went up to complaints that we had about volunteers being screamed at and materials being ripped down. We had a spectrum going all the way to verbal abuse, yelling and what you could only describe as harassment and violence.

Ms CAMPBELL: We talked a lot in this committee about ensuring that people have access to democracy. What kind of impact do you think the behaviours that you saw and that were reported to you would have on new voters?

Mr Simon: I've gone a lot, in my evidence, to talking about the behaviours that are exhibited towards our volunteers and the experience of a volunteer on a polling booth. I actually do despair mostly about what this is doing to the voting experience of ordinary voters. I watched at some of these booths—particularly in prepoll booths, where there are long line-ups—people basically being harangued in a line as they waited to vote. The sensory experience of turning up to a booth, having people trying to hand you a how-to-vote, having dozens of very negative signs around a polling booth and waiting in line and having people yelling different political messaging at you—I think all of that is contributing to a voting experience which is very poor for ordinary voters and, obviously, quite a shock to the system for any new voters. I think we're obliged to actually—I've always taken a view that the role of party volunteers is, obviously, to persuade undecided voters at a polling booth but also to facilitate a voting experience that's generally positive for those voters I think that we're not meeting that obligation, in the 2025 election experience.

Ms CAMPBELL: Thank you, Mr Simon.

CHAIR: We've got Senator Hodgins-May on the line.

Senator HODGINS-MAY: Thank you, Mr Simon. Sorry if I missed this at the beginning, as I was dialling in, but do you plan on providing a formal, written submission to this inquiry?

Mr Simon: The national secretariat of the Labor Party will provide a written submission. The purpose of my evidence is to provide some evidence on prepoll and polling booth behaviours that we observed on behalf of the state branch of the Labor Party.

Senator HODGINS-MAY: I want to note that it is quite difficult to prepare meaningful questions in advance without a submission. Do you know then, Chair, if we will get another chance to ask questions after we receive Labor's submission?

CHAIR: Yes. My understanding is that the national secretariat of most major parties and electoral participants will write a submission, and we will invite them accordingly. We did invite them to that 7 November hearing, but many of them haven't prepared a submission as yet and are happy to attend a hearing in 2026. That is my understanding. I believe we've got some submissions from the Liberal Party and the National Party in advance, to review and consider at the next committee hearing, and then others will follow in time. That is my understanding, Senator.

Senator HODGINS-MAY: Okay. Thank you, Chair. I think the submission deadline has passed. We were advised of that party submission date some time ago, so it is somewhat disappointing, but I will take you on your word that we should expect to hear from both Labor and the Liberals in the new year. Mr Simon, you have spoken about the potential need to strengthen enforcement powers for the AEC, even though they themselves are somewhat reluctant for this. Can you be a little more specific about what you think those powers should be, including whether they're about physical behaviour or things like policing signage.

Mr Simon: I've been purposely quite broad about the recommendations about the powers of the AEC because I think that that should be a well-thought-through discussion. So I'm not specific on those. It certainly should be a question for our national secretariat, coming from their submission. One of the recommendations that I suggested in my opening evidence was that there should be some restriction on the amount of signage at a polling booth. I think that's a pretty obvious starting point. I think there's obviously a whole lot of discussion about the six-metre rule and where the AEC's enforcement capacity stops and starts. In this environment I think that certainly needs a rethink. Obviously, behaviours that I'm talking about are serious, and also it doesn't really matter whether they happen six metres from the door to the polling booth or 15 metres. I think that there should be an open discussion about that.

Finally, I would say that some of these things may require increased regulatory or legislative powers, but I think some of the examples that I've talked to speak to a culture and disposition problem within the AEC, about how they're treating third-party actors like Morgan Jonas compared to how they treat political parties. I think they are being held to different standards, by virtue of the kind of context that these things have occurred in. I think they were treating Morgan Jonas like a fringe, third-party actor that was pretty low impact and not factoring in that this was quite a well-resourced, well-coordinated and well-financed operation into target seats. I provided the example in my evidence of the difference between how Jonas was treated and our very small experience in Fowler and how quickly the AEC leapt on that and how much time it took for the Jonas matter to both get attention and be taken seriously. The final point I'd make is that some of these things won't need legislative change. They need some cultural and disposition change within the AEC itself.

Senator HODGINS-MAY: You're saying you're open to a discussion, but no policy recommendations.

Mr Simon: I think specific policy recommendations will come from the submission of our national secretariat that will speak on behalf of both state and territory branches.

Senator HODGINS-MAY: Can I confirm that your view is that powers and restrictions should extend to all campaigners at voting locations, including third parties? Is your preliminary thinking of that nature? Your answer before to Dr Ryan wasn't especially clear, so I want to make sure that I've understood that correctly—that powers and restrictions should apply to all campaigners at voting locations, including third parties. Is that correct?

Mr Simon: Correct.

Senator HODGINS-MAY: Similar to the Greens, a lot of third-party groups and campaigners do a lot of legitimate work promoting policies and trying to engage voters with real information during election cycles. I don't think you'd dispute that this is a pretty healthy sign of democracy. What guardrails do you think are necessary to ensure that reforms targeting misconduct don't inadvertently restrict legitimate third-party participants? We see unions, community groups, faith groups and advocacy organisations out there participating robustly in our democracy.

Mr Simon: In my opening I flagged that third parties have been a feature of electoral campaigning for a long time. When I refer to that, I refer to some of the ones that you've talked about. Unions, environmental groups and others have been a regular feature of electoral campaigning as third parties. In the main, they are institutional third parties that have been a part of the system for a while and have adhered to a set of mostly uncodified norms about behaviour at polling booths that new entrants are not abiding by. They are pushing the limits of these norms. In the main, if you have changes that seek to regulate the behaviour of people at polling booths and that seek to regulate how polling booth set-ups and things are done, you're probably not really going to hit those more established third-party campaigns because, in the main, they play by those rules. I'm very confident that you can walk a path that clamps down on some of the very poor behaviour but that doesn't inadvertently hit third parties who have been doing this for a long time.

Senator HODGINS-MAY: Codifying is one thing, but do you have a sense of who should enforce it? Have you suggested the AEC?

Mr Simon: For sure, I think the AEC is obviously the first port of call for enforcement of these issues.

Senator HODGINS-MAY: Hm. Okay. Finally, the other aspect of making sure our elections are fair and equal is, of course, ensuring that information is accurate and fair. We've heard a lot in previous hearings about truth in political advertising laws. You alluded to this in your answers today. Does Labor believe that truth in political advertising laws should be legislated federally?

Mr Simon: I think that'll be a matter for our submission from the national secretariat, so I'll leave that there.

Senator HODGINS-MAY: We look forward to receiving that submission soon. That's all from me today. Thank you, Mr Simon, for appearing.

CHAIR: There are just a final few questions from me. As I said in my opening statement and as the AEC said, there were over 130 new participants at this election. I'm asking you this question in your capacity as an individual, not necessarily on behalf of New South Wales Labor. Do you have an understanding why this might have happened to the scale and the extent that it did in 2025?

Mr Simon: I think it's hard to ignore the context of polarisation in politics as one of the bases for the proliferation of these kinds of groups, particularly groups on the far-right like ADVANCE and others, who really trade as agents of chaos. I think that what we're seeing right now in the proliferation of third parties and the behaviour you see at polling booths is probably a manifestation of a broader polarisation in politics, particularly on the far-right.

CHAIR: We really appreciate your time today, Mr Simon. We obviously look forward to further contributions not just from other state branches of all political persuasions but also the national bodies. If you've been asked to provide any further information, as you have, would you please forward it to the secretariat by 5 December. You'll be sent a copy of the transcript of your evidence and will have an opportunity to request corrections to any transcription errors.

Proceedings suspended from 11:01 to 11:33

MANSILLO, Dr Luke, Private capacity

CHAIR: Welcome. Although the committee does not require you to give evidence under oath, I should advise you that this hearing is a legal proceeding of the parliament and therefore has the same standing as proceedings of the respective houses. The giving of false or misleading evidence is a serious matter and may be regarded as a contempt of parliament. The evidence given today will be recorded by Hansard and attracts parliamentary privilege. I now invite you to make an opening statement before we proceed to discussion.

Dr Mansillo: I'll try not to bloviate! I would like to associate myself with the opinions of Professor Rodney Smith, who we heard from earlier today, especially with regard to the equality-with-Tasmania proposal. Generally I do not want to see the Australian Electoral Commission doing regular redistricting. This is needless administration.

There are some things I'm a bit agnostic towards. I'm not necessarily in favour of fixed terms. We have a compulsory voting system, which means we have low-information voters who are compelled to vote. For that reason, the guessing game, which we find annoying as high-information individuals, is incredibly important to the psychology of someone who is not readily adept at politics nor keeping up with every single update to prompt them to become more informed about politics ahead of elections. So there is a useful psychological purpose for this constant nudging. So there's that.

There is also, as part of the Westminster tradition, a particular power of the Prime Minister to choose the time to go to an election. There are also consequences in terms of the buying up of advertising, be it on TV, online or what have you, and having bidding wars in the physical space of physical advertising. That's something in which having a fixed term would create an additional premium. For instance, off the top of my head, the paper market will quadruple in price as everyone starts to buy paper all of a sudden, but if we were to already know of this we would have the same sorts of impulse buying occurring throughout and this would block out minor voices. So only large or larger parties or interest stakeholders with resources would be able to use that in fixed-term situations. This is also something which is not terribly well adjusted for our system, which has double-dissolution elections embedded in it. It's a bit of a contradiction within the constitutional system that we have. So I'm a bit wary about putting that in myself. I'm not firmly against it, but the tendency is to be against it.

My pet topic is polling. Polling is the link that we have between MPs and voters and voters and MPs. It is the nexus by which you, as elected members of parliament, can learn about what voters want and can translate that into what voters want. I will take the liberty of reading the terms of reference as it being a domestic interference in the form of a signal which is getting in the way of being able to read the voters. I realise this is an unbelievably liberal reading of the terms of reference, but I'm going to take that liberty!

We have had an absolute shocker of a decade when it comes to polling in this country. Australia performs worse than the UK. Australia has compulsory voting. Britain does not. Australia has a census every five years. Britain has one every decade. The quality of data that they have is much poorer. We only have the task of persuasion, whereas they have persuasion and turnout. We live in a world in which we have a poor state of general polls at the national level, but also more recently we have seen the advent of MRP, multilevel regression and post-stratification, polling—I'm happy to describe this further if need be. This is absolutely essential because of the fragmentation of the Australian party system and the entrance of new actors. There is an increased level of sophistication and diversity, and these tools are required to comprehend what is going on in the electorate. The major difficulty with this is that our pollsters in this country have had a closed shop. For decades they have been able to kiss the ground on which we stand because of compulsory voting and our high-quality census, which has meant they've been able to wring out any difficulty with our polling within that sort of five or six per cent range that the polls normally bounce around in a two-party-preferred basis. However, this doesn't work anymore, so our polling is creating a great deal of interference. Not only do we have worse polls than Britain in this instance but they are so bad that if you were to use the YouGov polling at the last federal election the amount of information equivalent to it was as good as merely using the previous election result. That is the dire state of polling. So why did you go and collect these data in the first place and then go and model it? Then again, we also have the difficulty of parties purchasing and using this junk to then read what voters want, and, because parliamentary parties and organisational parties aren't able to get an accurate grip on what voters want, this is leading to frustration in the inability to represent what voters actually want. This is epistemically a problem, and we seem to be surprised that voters are annoyed.

It seems to me that this is an issue that is appearing elsewhere in our politics—and not just politics but public policy. For example, the parliamentary budget papers for 2022-23 had the ABS and RBA 'improve macroeconomic data collection for prediction'. If I am not mistaken, it was $197 million to be spent over seven years. Fundamentally, this is not merely improving IT systems. This is the fundamental survey data on things like

consumer confidence, inflation and unemployment. With these sorts of things, we do not get God appearing from the sky with stone tablets that say, 'The unemployment rate is really 5.2, not 4.9 per cent.' But we do get, on election night, the AEC declaring what the election is and we can then calibrate how our surveys are performing. This is how we, as social scientists, can get a read on what is going wrong with our instruments for any form of evidence based public policy, be it in criminology, epidemiology, sociology, or just trying to represent voters. Depending on which department you're in, you can't actually make public policy in a meaningful sense, and we seem to be constantly surprised at us going around. I realise this is branching into other committee areas, but there is a great problem in the way that we come to understand the Australian voter because the tools we're using are not necessarily appropriate or the people who are using them are not the best. This speaks to the human capital of those who are using these tools.

This week we've had a few good examples. For example, the *Sydney Morning Herald* published some internal polling done by YouGov, which had some MRP work done, which I've seen. This used 5,007 respondents and then used all 562 state electoral districts in the country, meaning that there were about 11 people in each of the electorates. This is no way to run a robust way to do this, but we seem to pass this off to people who pretend to know better. Parties are buying junk and they're defenestrating their leaders on these sorts of things, be it in New South Wales, be it federally or be it in Victoria at the moment. This is quite pertinent in the sense that policy is being made and careers are being lost on this information. There are cowboys out there. I'm not saying that YouGov is the worst out there. Accent Research has produced far worse material. I'm happy to provide that in a submission later on. There are all sorts of issues which I have found in other cases throughout the last decade.

So, apart from mentioning the lack of competence, I have some proposals which might be useful. Perhaps create some people with some competence. We have universities in this country. I would love to see some centres for survey research which are well funded. Political science, sociology and anthropology in the United States are treated by the U.S. National Science Foundation as sciences, and not social sciences, along with humanities. While there are some crossovers, they get the same treatment as chemistry and apply the same techniques. They get bigger buckets of cash from the ARC-equivalent to thereby conduct more robust work with particular tools which are more costly.

Because I care a great deal about parties being able to know the voter and interest groups, be they Climate 200 or any registered entity which would be active in an election campaign or possibly even a registered lobby group, if they are to conduct any survey research, I don't see why the Commonwealth would be necessarily opposed to having a quid pro quo arrangement of subsidising high-quality work of a certain standard so you don't have cowboys out there producing guff and polluting the body politic. I don't know what the subsidy could be—say, 80 per cent, just as a proposal. Then the quid pro quo would be that those data would then be deposited in the Australian Data Archive as a transparent feature that we could, after an embargo of, say, three years, look at and diagnose what occurred and work out what went wrong with the polls so people like myself can improve the social scientific work that we've got and we can make a better effort at trying to understand the voter and work out how we can translate their will into policy and not frustrate them at every turn.

There's also a difficulty when it comes to threats. There are two sorts of threats. There's incompetence and there's nefariousness. The first is incompetence. As I've described earlier, these are tools which are currently causing leaders to lose their jobs in our state parliaments. I imagine you may also have lobby groups producing internal polling every now and then. You do not know how to assess this and what have you. But there is a long history. Professor Murray Goot has done some very good work on the use of push polling on Indigenous issues, for example. This could be applied from the Mining Council or, you could imagine, from some other entity, be it the Australia Institute or any institute that wants to get a particular position. After all, politics is a game and you play to win. Some entities may be underhanded. I'm not suggesting those two are necessarily underhanded or above board, but it is up to us to determine the conditions that we'll let them abide by. Then there's incompetence. At the Research Society they have an unbelievably low level of statistical competence and also psychological competence when it comes to producing survey research, and that is one of the reasons why we get such poor polling. In a way, we're dealing with toddlers who should be given plastic spoons but they've got a steak knife in their hand and they could very well cut themselves; I'm going to leave you with that rather visceral image!

As a quip, I was thinking, on the train ride here—and Dr Ryan may appreciate this: we have a sphygmomanometer that in the past has read diastolic blood pressure 30 points higher than it should be for three patients. Would you conduct surgery on your fourth patient under such conditions, knowing that the tools of your craft are so poor? And if not, why would we apply those medical ethics to a human body in a disparate way to the body politic?

CHAIR: Thank you; one of the more animated contributions! I appreciate it. Essentially your evidence today is that bad polling is like misinformation—that it pollutes decision-makers' opinions and impacts their actions.

Dr Mansillo: Yes.

CHAIR: Do you feel that extends to voters as well?

Dr Mansillo: It works both ways. I think this is mostly prescient because we have a system in which, for the last two elections, we've started to see tactical voting emerge, in our preferential voting system. Normally we have had positive voting in the sense that you will preference in terms of who you would like to vote for as opposed to who you would like to vote against. In a world in which we have increasing polarisation of various forms but also a greater diversity and sophistication of voters and issues, because of the increased demands placed on our political system, we find that voters will take cues from MIP polling or just national polling in general and then translate that into, 'How do I keep party A out and put party B in, or get candidate C in over party B?' They may be the fourth most preferred, or what have you, but there is a ranked choice element. This is something which voters are feeding into their calculations.

CHAIR: There are two very different types of polling. There is internal polling, which doesn't get published—but, as you've identified, some polling gets dropped and some stories are written about polling. I think one of the funniest examples I saw covered in the media was polling for the seat of McMahon which predicted that the current member would lose his seat. In an election campaign, would you consider that type of published polling as electoral matter?

Dr Mansillo: I think it is, because it crafts the agenda and it crafts how voters think about competition. Now you've prompted me to think about something else, which I omitted in my initial statement.

CHAIR: Go for it.

Dr Mansillo: It is not beyond the realm of a media outlet—say, channel 8½; let's go for that!—to go down to a polling organisation and pay $200,000 to hire someone with competent skills—myself, for example. I could turn that into 30 seat-specific issue estimates and run that for every single night of the campaign. I could take the agenda off the major parties. We are in a different realm where there is a capacity for actors to point out that voters seek certain things, and to compare and contrast and to try to put parties in a position to respond, be on the back foot or what have you. I'm most interested in if they're of low quality rather than, 'Voters want X, but they get Y, and this is bad.' That's another matter altogether, which I have pointed out. But if you are getting a poor indication of what the people actually want, and then you're claiming that people want something, if you are manufacturing a mandate, then it is problematic to the discourse and the way in which we conduct our discussions in a place publique.

CHAIR: We've heard some evidence and there have been some questions about this, and the AEC have recommended that we redefine or have a look at the current definition of 'electoral matter'. I look at some of the questions we've received from members about influencers, like, 'Is that an electoral matter during an election period? Does that need authorisation?' Would you consider published polling that has a campaign through media or otherwise as an agent of influence in an electoral way?

Dr Mansillo: Absolutely. There comes with it a weight of a claim of, 'Voters would like X,' and, from that, certain things ought to flow from the translation of the general will. If there is bias, a systematic mischaracterisation and an error in signal, then there is, in my opinion, a difficulty that we may be led up the garden path in some respect. This I will not get into in great detail, but I do think, for example, efforts on the Voice referendum were a function of 25 years of incredibly poor survey research from people in my part of the world. So I'm not saying that Australian academia is covered in glory; rather there are certain people who have certain skills in survey research methods—they may be political psychologists, or they may be what we call political methodologists, which is a subdiscipline of political science—and these are not well served. There are not many of these specialities in Australia. For that reason, we seem to be in a situation where the deaf are leading the blind, and we seem to run into the same problem year after year, and nothing really gets done, which is why I expanded it out to the RBA constantly getting the inflation forecasts horribly wrong, and all the economists having no clue why that's the case. This is something quite systematic to the epistemic environment of the people who make the data on which we make all our decisions.

CHAIR: I'll see if anyone else has any questions. Dr Ryan?

Dr RYAN: I am online, but I'm a bit distracted because there's a protest outside of my office at the moment, which is causing a bit of a kerfuffle. Sorry, I don't have any questions right at this moment in time.

CHAIR: Thanks. Hope you're alright. Ms Campbell?

Ms CAMPBELL: Thank you for giving evidence, Dr Mansillo. In terms of polling, all polling and indeed all research has its limitations—post-stratification weightings are what you're talking about, but online panels have limitations, caddies take a long time and are expensive, robos have traditionally had some questions as to accuracy, and groups have limitations as well. Is it MRPs specifically or is it broader than that, so all forms of research, that you're concerned about?

Dr Mansillo: I am concerned, broadly. You have listed a series of nodes that are about the collection of survey data. We take that survey data and then we try to model it to wring out some of the systematic bias in it. The difficulty is that, once we do that, we don't get too far, which is more a problem with the initial data in the first place, and it becomes quite transparent that we are in a situation where crap goes in, crap goes out.

Earlier, when I was describing the British polling, I was referring to how YouGov has done incredibly well when it comes to their work in Britain and in the US. They have done quite well in Germany this year, as well as Canada. But Australia stands out for the lacklustre efforts, or at least—I'm looking now at the data for the UK. I will give you an example. In 2019, their MRP efforts for the Conservative party had an effective sample size for each constituency of being 149. If they used the 2007 general election result, that amount of information would be 79 cases whereas, for the last Australian election, that would have been 45 for the LNP—sorry, no; for Accent's efforts for the LNP. Using the previous election, that would have been 65. Accent Research with Redbridge performed worse than merely using the previous election, and the LNP, with YouGov, had the equivalent effective sample size of 103, which did outperform the previous election result equivalent of being at 65. What I'm trying to express here is that we are getting incredibly poor data, and this is going through the wringer.

Ms CAMPBELL: How do you account for the differences between Australian and overseas jurisdictions? Presumably, overseas jurisdictions have had the same challenges as we have in terms of data collection being primarily by landline telephone into online forms of data collection. What's the difference between overseas and us?

Dr Mansillo: I will have to look at the specific years, but the House of Lords, for example, has its own committee work that they have done on this. They have produced a great deal of material on how to regulate the industry. The actors there are much more institutionally designed to be responsive. Here, they're just a closed shop. For example, the British Polling Council is made from equal parts of vendors who produce polls, media proprietors who purchase polls and academics who work on survey research methods. In Australia, it is just a marketing exercise because it is entirely made up of the pollsters. They give their work to the media—to the Guardian, to the *Sydney Morning Herald*, you name it—rather than having it purchased. It's a completely different relationship here, and partially it is to do with Australia's political economy of being the land of duopolies. There's not much of an incentive structure for Woolworths and Coles or Qantas and Virgin to purchase a great deal of polling on market research. So there isn't a large community of people working in this space which we can come along to as people who work in politics. There isn't a resource which has been built up through commercial uses that we can tap into. One of the reasons why I was very keen to suggest that there be investment through public money is that there isn't the money going in, and going into quality.

Ms CAMPBELL: Obviously, you said earlier that you thought that it was of particular importance that this community understand polling, because voters were relying on polling that was published, and, presumably, you suggest that that affects their behaviour. Adjacent to this, but something that we've been talking about, is the presence of essentially online surveys which spit out who you should vote for. You're asked a series of questions to do that. I'm interested in your views on that, because, in terms of influencing voter behaviour, that seems like a far more concerning and specific thing for voters to engage with.

Dr Mansillo: Yes, that's fair. 'Voter advice applications' is the technical term for this—VAAs. The one which the ABC has used has been associated with the University of Toronto, as well as the universities of Melbourne and Sydney. When the ABC has gone over to Clif van der Linden, who runs that at University of Toronto and his own outfit at Vox Pops, it has had the involvement of local academics. Apart from that particular one, I'm not too familiar with a preponderance of similar sorts. Now, I have seen some very interesting versions of this in Germany, for instance, and it is well worth considering the appropriateness of some of these typologies. By 'typologies', I mean how you should classify a voter and what is proximal, given certain terms.

We have had all sorts of theories when it comes to how voters ought to vote, in terms of issues or partisanship or what have you. But in terms of, say, issues and then the salience of various issues, where you get to rank how much you rate various issues, in addition to the proximity to various issues, I don't have a great deal of difficulty, if that's transparent. One of the difficulties which I know that VAA vendors have is that some of the parties do not oblige. For instance, One Nation does not oblige Vox Pops when they produce Vote Compass for the ABC, so educated guesses are ultimately what are produced.

This is not an area of political science that I necessarily work in, but, for example, there is the parties' Manifesto Project, which I think is at the University of Gottingen. I could be wrong on that, but I'll chase it up. They classify party positions on various issues, and there is a fair amount of robust work on placing parties, given their positions on various issues. I'm not normatively opposed to it, because, ultimately, it's introducing information to voters. Now, how well does that characterise the positions of parties for voters? That's an open question, and I think that, if you're going to regulate this, it might be worthwhile to disclose how you came up with such positions—the coding scheme or what you have in the bowels of the website that produces it, or possibly the links to various sources which show the claims made by various MPs on why that's their position—just to be transparent about it, because it is about educating voters and then providing advice based on information that you're providing to voters.

One thing just crossed my mind—sorry.

Ms CAMPBELL: I suspect that I'm using time, so I was going to say 'last question', Chair. I was going to ask: when it comes to those kinds of systems that attempt to predict how you should vote or, indeed, tell you how you should vote, if you think that methodological disclosure is okay in those circumstances where a system is actually saying, 'And this is what you should do at the ballot box,' why do you think that there's a difference, in your view, for polling and methodological disclosure?

Dr Mansillo: It's not at the individual level; that's at the aggregate level. The claim is that the mass of citizens believe blah, or X. Therefore, there is a disposition in the electorate that we would expect to be translated into public policy. So, if we were to take the normative plane that the views of voters in the majority ought to be translated into public policy—and that's a delegate model as opposed to a trustee model of representation. I'm happy for views to be taken into consideration and for the wisdom of MPs to contemplate this, but this should be explained. It's a part of doing politics. My point is that the interference when it comes to claims of what voters want, if they are mischaracterised by poor methods, may lead MPs astray. And, if it is giving voters the indication that, say, one candidate is more likely to run third than second, then you may change your preference order to vote someone out rather than vote for someone. That's in terms of strategic voting being a novel feature of the last two elections.

Ms CAMPBELL: Thank you. No more questions, Chair.

CHAIR: Dr Mansillo, we really appreciate your evidence here today. If you've been asked to provide any additional information, please forward it to the secretariat by 5 December. If you want to make a further written submission, you'll be able to do so when submissions reopen for 2026. You'll be sent a copy of the transcript of your evidence and will have an opportunity to request corrections of any transcription errors.

Proceedings suspended from 12:12 to 13:32

BOLTON, Ms Sue, Private capacity

DULOY, Ms Catherine, Private capacity

FEW, Mr John, Private capacity

HAYES, Mr Matthew, Private capacity

HELY, Ms Susan, Private capacity

HEMMER, Mr Alex, Private capacity

ROBERTSON, Dr Graham, Private capacity

CHAIR: We'll now proceed to this afternoon's community session. Participants in this session have been invited to give a five-minute statement to the committee. I'll invite participants to come to the table one at a time to give their statements. I would ask that the participants then remain at the table to briefly answer any questions from the committee before we proceed to the next witness, if they so wish. Although the committee does not require you to give evidence under oath. I should advise participants that this hearing is a legal proceeding of the parliament and therefore has the same standing as proceedings of the respective houses. The giving of false or misleading evidence is a serious matter and may be regarded as a contempt of parliament. Please note that the evidence given today is recorded by Hansard and attracts parliamentary privilege.

Welcome. Do you have anything to say about the capacity in which you appear before the committee?

Mr Few: I'm from Eastwood Chinese Business Collective. I'm here to make a statement in the capacity of a community member from Eastwood. I worked at the Eastwood Community Baptist Church booth during the election, and I observed something unusual.

CHAIR: Thank you. Mr Few, I now invite you to give your statement before we proceed to questions.

Mr Few: During the 2025 federal election, I attended Eastwood Community Baptist Church polling booths on multiple occasions, and I observed a coordinated presence of individuals associated with a certain organisation. Later on, it was revealed that it was the Brethren. I first observed a lack of transparency. When they were approached, they declined to identify who they were or where they were from. They denied that they were associated. They said they were just unrelated friends.

Another thing was their response—always scripted. They have scripts. I think they may have had some training. I don't know. Another thing I observed was their behaviour. Sometimes, they were quite aggressive, even physically. Sometimes, like when you play basketball, they worked in pairs. One set up a wall, like a block, and the other—it was very unusual and uncomfortable. I worked during the last federal election, and I didn't see those people. That's the statement I want to make.

CHAIR: In regards to the physicality of the experience, it's evidence we've received from a lot of people. You mentioned it was like basketball. Could you expand on what you witnessed. You said it was 'unusual and uncomfortable'. Walk out what you saw at the polling booth.

Mr Few: Very often, as I myself experienced a few times, when there was a potential voter walking into the hall on the way and we tried to hand over materials, there was always one pair. One would position themselves between one of our volunteers and the voter, and the other one would hand over their materials.

CHAIR: So they were trying to block you from handing out information to voters as they went through?

Mr Few: Yes. Most our volunteers are not experienced, and they're not ready for that. It's very intimidating.

CHAIR: Why do you think they did that?

Mr Few: I don't understand. I think that they prepared and trained and that they were told by someone that this is okay.

CHAIR: You mentioned that you've volunteered on other elections before. Was this aggressive behaviour something you'd experienced before?

Mr Few: No. It was only this time and only from this group. Scott Yung's team, led by his mum—they were okay.

CHAIR: So it was that third-party involvement? You mentioned the Brethren.

Mr Few: Yes. I think those people are different from Scott Yung's volunteers recruited by his mum.

CHAIR: You mentioned you had some volunteers who were not experienced. This might have been their first time volunteering or not. Were they impacted by it as well? You mentioned it was unusual and uncomfortable. Did you get similar feedback from them?

Mr Few: Yes. Quite a few people suggested to me—

CHAIR: They didn't like it?

Mr Few: Yes. They don't like it. They said, 'Is this usual?' The first few days they were not there. Then, when they came, everything changed.

CHAIR: Everything changed in what way?

Mr Few: It's not civil or nice anymore.

CHAIR: Do you feel that this committee should address that so that it returns back to what it was like previously—so that aggressiveness is removed from the booths?

Mr Few: I think, if something can be done, that would be good. This democratic practice should be free and safe.

CHAIR: Dr Ryan, did you have any questions?

Dr RYAN: Thank you for your testimony today. Are you able to give us any idea about these individuals who you've identified as being part of the specific group—how you knew that they were part of that group and about the age of the people you're talking about?

Mr Few: Yes. At the polling booths, I could only feel they were different from Scott Yung's own team before. It was very easy. The first few days, we knew each other already. Then the next few days, those people started to come in, and they behaved very differently.

Dr RYAN: In what way?

Mr Few: Like I mentioned. First, they were not very familiar with Scott Yung's other volunteers who were there from the beginning when they first joined. And their behaviour, also, was different. I feel they were playing their own game, as if it was a sport. That's why I feel there is something wrong—that those people are different.

Dr RYAN: We've heard from some other people that some of the volunteers that have been identified as being allied with the Exclusive Brethren were very young. Was that the case where you were?

Mr Few: The majority of them were young, but there were some more senior people as well. I think they were leaders. But the majority of them were quite young, yes.

Dr RYAN: When you say young, do you mean school age or young adults?

Mr Few: I think no older than young adults. Some were even school age.

Dr RYAN: Thank you.

CHAIR: Thank you, Mr Few. We appreciate it. I now welcome Susan Hely to give evidence. I think you may have missed this, Ms Hely, so I'll repeat it. Although the committee does not require you to give evidence under oath, I should advise you that this hearing is a legal proceeding of the parliament and therefore has the same standing as proceedings of the respective houses. The giving of false or misleading evidence is a serious matter and may be regarded as a contempt of parliament. The evidence given today will be recorded by Hansard and attracts parliamentary privilege.

Ms Hely: I volunteer in the seat of Wentworth. I thank you very much for the opportunity to speak about my experience. I'm really glad I can talk about this, because people don't know just how awful it was in Wentworth, and it does need to be on the public record. First up, I want to say that I may be persecuted for speaking out. A lot of people I know would like to talk to you, but they're worried that they might be targeted.

I've been handing out for the Greens for quite a few years. It's always been a fairly cohesive community, and I can only recall one voter ever shouting—at the whole lot of the volunteers because he wanted to be left alone and didn't want any pamphlets.

Then the Waverley Council election, in September 2024, came along, and things got really ugly when disrupter groups ran a highly organised, well-funded, aggressive campaign against the Greens. We had people in balaclavas taking down corflutes. There were big, muscled men standing at the polling booths and the prepoll, shouting 'vote the Greens last' at voters who went up to the polling booths. There were stickers saying the Greens were corrupt, racist, fraudulent. Kids who were 12 and 13, were paid, I believe, to harass the Greens on booths. And voters were mobilised to shout abuse at the Greens.

The reason why I mention the council election and why it is important is that we were concerned that it was a preview of what would happen eight months later for the federal election, and our concerns were justified. This is exactly what happened in Wentworth. The same organiser for one of the disrupter groups—Sophie Calland, who set up Better Council, one of the disrupters—set up Better Australia to disrupt the seat of Wentworth in 2025.

Today I want to make the point that, ideally, groups that aren't standing for election should have no role in agitating at an election. But, even if lobby groups are involved, they need, at least, to be voting Australian citizens. What I am highly suspicious of is that foreigners were involved in disrupting the Waverley Council election and the federal election. As a matter of national security, noncitizens should be banned from any involvement around any election campaigning.

I believe people were trained in how to disrupt the Greens. I'm a 68-year-old woman who isn't tall, but I was screamed at—very close to my face—maybe three times an hour on average. As a journalist with 45 years experience, I interviewed 25 other volunteers from the council election to see what had happened to them, and there was a pattern of the same abuse. Common phrases included—we were screamed at—'you're antisemitic', 'you're racist', 'you're fascist', 'you're terrorists', 'you're Nazis' and much more. Very conservatively, there were at least a thousand instances of abuse during the council election—how I've calculated that is in the notes—which only had a week of prepoll. There was much the same with the federal election.

One of the things I think needs to happen is a crackdown on aggressive behaviour, on attacking people. It's okay to attack policies, but you need to stop abusing people and discouraging their participation, because that's really what has happened. What worried me about Better Australia was that they were decked out in yellow clothing with 'community adviser' and maps of Australia on their T-shirts and vests. Who else wears a yellow vest and has a map of Australia on their signage? The Australian Electoral Commission. AEC supervisors wear yellow vests. I think some voters approaching the booths thought that Better Australia were officials, and they stopped to listen to them.

Another observation about Better Australia is that kids were handing out at polling booths. Of course, there were a lot of people with heavy foreign accents. I was photographed and sworn at, and young men targeted me when I stood alone from other volunteers. The atmosphere at the polling booths was hostile. It was destabilising. 'These people want to fracture our society for their own benefits further down the line,' one volunteer said. You couldn't always talk to people when they asked questions. When voters came up, often the disruptors cut the volunteers off physically from getting to voters.

Intimidation and abuse have a huge impact on volunteers and potential candidates, putting them off. The abusers didn't back down even when you didn't take the bait. One man who swore at me was wearing recording glasses to try and trick me, to then, potentially, upload a shouting Green. What's more, some of the Greens volunteers continue to be harassed in their own community that they live in after the election, which is awful. I urge the AEC to implement measures to stop coordinated aggression against political volunteers. Also, it must prevent foreign interference in our democracy and elections.

CHAIR: Thank you, Ms Hely. I'm interested in some of your comments about the disruptor groups. Do you consider some of the tactics they used as interfering in the electoral process?

Ms Hely: Yes, I think you could say that without a doubt.

CHAIR: Why is that?

Ms Hely: It was incredibly confusing for voters as they approached booths. There were so many people around and so many corflutes that people had to navigate around. I heard them lie about what the Greens are doing and what the Greens are standing for. We've got a lot of religious zealots in Wentworth, and I really think they'd been a bit brainwashed. You've got the exclusive Plymouth Brethren in your area, but we've got some other people, and I think they might have been told something in a religious setting. Because it's in a religious setting, they believe it—just like the Plymouth Brethren. So it all came to a head.

CHAIR: You mentioned that some of the behaviour that you witnessed, the aggressiveness and the disruption, had an impact on volunteers and other participants. Do you feel either you or some of the people you know would be less likely to participate as volunteers at future elections?

Ms Hely: Yes, absolutely. After the council election and what had happened, especially with these street kids who came up saying, 'Where are the Greens? Where are the Greens? Where are the Greens? Where are the Greens?' some people thought, 'We're not going to let this happen.' A lot of women were targeted. When I interviewed the 25 people, younger women and older women, a lot of them said, 'I'm not going to volunteer for the federal election.' A lot of them stood a long way from the polling booth if they did hand out. I myself felt that

I didn't want to do it, but then I knew they were really low in numbers, so I thought, 'I'll just do it for a couple of hours.'

It wasn't as bad as I thought it would be, because some of the other volunteers, particularly the Allegra Spender volunteers, were reasonably friendly. To have some people around you that were fairly nice helped. When people came up, accused you of all sorts of things and told you to fuck off and everything, it wasn't so lonely. But then you were targeted. I think I said that, on the last afternoon, on polling day, I was just standing there, and this young 30-year-old guy comes up really close. I had a bad feeling about him. He was thin. He had a nice face. He had longish hair. He comes up really close and just shouts, 'Terrorist!' right at me. There was nobody around. It just stays with you, very much so.

CHAIR: You were saying that the main protagonists were Better Australia. Is that right, or were there others?

Ms Hely: Better Australia was the main one in the eastern suburbs.

CHAIR: In Wentworth, yes.

Ms Hely: In the council election there was another one called 'citizens for harmony'.

CHAIR: But for the federal election, it was people associated with the Better Australia third party?

Ms Hely: That's right.

CHAIR: Thank you. Dr Ryan?

Dr RYAN: Thank you for your testimony. I'm sorry for what you experienced. Why do you think things were different this time around from how they've been in previous elections? Do you have any ideas?

Ms Hely: I think the Middle East became weaponised, and I think that a lot of these people who were really stirred up were told a lot of lies about us. For example, a lot of the Greens are Jewish in the eastern suburbs. They're married to Jewish people. They're friends of Jewish people. But suddenly we were antisemitic. We were Hamas supporters, according to these groups. That all became inflamed. It was like a grenade going off. You couldn't really discuss it with them, because they were just so worked up. I think they had been told—formally trained. I've got evidence that these people went on online training sessions for what to say to the Greens to stir it all up. That's what happened in our area.

Dr RYAN: One of the things we've heard about pretty consistently is that the AEC has struggled, given that it's not able to enforce problems beyond a six-metre margin around polling sites. Beyond that six-metre mark, it's no holds barred. Anything can happen. Was that your experience as well—that you felt at risk and a bit vulnerable? Was it your experience that that was beyond that six-metre mark that the AEC should have been enforcing?

Ms Hely: Yes, because—up at, say, for example, Margaret Whitlam, or Bondi Junction, near the pre-polling stations for the federal election—to actually go in and talk to the AEC officer, you'd have to take off your volunteer clothing that's tagged, and then go in, and then find the person and tell them what has happened. So it would be a bit of a process, and then, quite likely, by the time you came out, the abuser, the perpetrator, wouldn't be there. I actually went to a community policing night and gave the police my report on the 25 volunteers and what had happened and asked for a bit more policing of the polling booths, because we were really quite worried about behaviour. As far as my experience goes, and that of a few other people I talked to, we didn't see the police, but they kept saying, 'Just ring us and we'll be there.'

Behaviour can really flare up. I got shoved once by a woman. There was talk of an elderly volunteer who got shoved by someone as well. So it got a bit nasty. There was a lot of jockeying with corflutes, and shouting and things.

Dr RYAN: Thank you very much. I've got no more questions, Chair, thank you.

CHAIR: Ms Campbell?

Ms CAMPBELL: Thank you very much for giving evidence, and I'm sorry that you've had this experience. When you talked about abuse of volunteers on the booths, can you give us a bit of insight into what form that took? Obviously, you just said you'd been shoved, but what were the other behaviours that stood out to you that were experienced by the volunteers?

Ms Hely: I think it was the shouting in your face; occasionally, there was a bit of fist-pumping in the groin area by some of the men, to some women, and they wouldn't back down. There were a lot of accusations: 'Tell me where you get off, believing in this,' and someone told me that they'd said to them, 'I don't think you're really interested in talking about this.' Sometimes other people had to intervene to sort of peel them off, and other volunteers had to say, 'Just stop it. Go away. Leave them alone.' You had to be quite forceful with some of the

people. I couldn't believe the ages of the people! There were women in their 30s just in my face, and I'm 68. I thought, 'This is really bad behaviour!' and, 'What on earth is this about?'

Ms CAMPBELL: What do you think the most effective methods of preventing that behaviour might be?

Ms Hely: That's a really good question. I've thought a lot about it. I know it's super expensive, but, if there were somebody inside the polling booth with a camera or a screen, looking at what was happening outside and monitoring that, that could help. Seriously, I really think that needs to be happening. I think that you need a bit of police presence walking through that might control some of the bad behaviour. Maybe a few signs saying that this won't be tolerated.

Ms CAMPBELL: Thank you very much.

CHAIR: Senator Hodgins-May.

Senator HODGINS-MAY: Thank you so much for appearing today with us. You talked a little bit in your submission about some deliberately deceptive branding, materials, signs, clothing et cetera being used by third parties. For example, they were using colours, branding and logos that were similar to the Greens and the AEC. Do you think that they were deliberately trying to misrepresent information?

Ms Hely: Yes. I think when you've got signage saying 'the Greens' and it's in a font similar to the Greens' font, people will sometimes think it's a message from the Greens. I think that is particularly misleading. There were the pamphlets. We haven't talked about pamphlets, but there were a lot of pamphlets coming through the mail with a lot of disinformation. They were not just about the Greens but also Allegra Spender. There was the classic one of the brochure that didn't have an address or an authorisation on it. That was all going on. But, yes, the branding—there was a banner. I sent in a photo of the banner and some of the posters that said, 'This is how often Allegra's voted for the Greens.' There were corflutes everywhere, and it was all not true. But they had the resources to fight back with posters reversing that information. But not everyone has the funds to be able to quickly whip up hundreds of posters and things like that.

Senator HODGINS-MAY: Ms Hely, do you still have examples of those brochures or pamphlets that you might be able to provide on notice to the inquiry committee?

Ms Hely: Yes, I do. I don't have the one that was, I think, a 16-page pamphlet. I've only got what was on the media and some others. I could send those through to Samuel.

Senator HODGINS-MAY: That would be most appreciated. Thank you. From your perspective, should this advertising be allowed, and do you think we should be considering laws that better regulate political advertising?

Ms Hely: Absolutely, especially for the lies and the claims because, at present, I think people can get away with quite a lot of crazy stuff.

Senator HODGINS-MAY: Thank you very much. Again, apologies for the experience that you've had, Ms Hely, but I appreciate you appearing today.

Ms Hely: It's great to be able to talk about it and let people know.

CHAIR: Thanks for your time, Ms Hely. If you've been asked to provide any additional information, please send it through to the secretariat by Friday 5 December, if that's okay. I now call Matthew Hayes. Do you have any comments to make on the capacity in which you appear?

Mr Hayes: Thank you very much. I'm a hidden disability advocate and a first-time voter during the 2025 federal election.

CHAIR: Thank you so much for coming today, Mr Hayes. It's going to be great to hear your evidence. I now invite you to deliver a five-minute statement, and we might ask you some questions afterwards.

Mr Hayes: Fantastic. Thank you so much for giving me the opportunity to give evidence here today. I'm a hidden disability advocate and social media content creator under the handle AheadMatthewawsome, but, today, I'm speaking as a first-time voter on my experiences of interacting with the electoral system as a person with a hidden disability.

From a young age, I was determined to have a voice in our democracy, and there were many times when that voice may have been lost. When I was first diagnosed with autism, when I was two, the doctor's prognosis was that I would never talk, hold a conversation or have my voice heard. So it's a great honour and privilege for me that I am able to speak to you all today. As soon as I could, I enrolled to vote and was eager to engage with decision-makers in whatever capacity I could to help young people who couldn't speak up have a voice for them on the table.

During the election campaign, I travelled all across New South Wales observing the mood of the local communities and how electoral campaigns were being conducted and getting to know candidates and volunteers. Although I was not voting at the time, I had been active doing exactly this since the 2013 federal election. When of the first things I noticed, contrary to what the public mainly sees, was how respectful people were to each other. You could have Liberal, Labor, Greens and independent candidates and volunteers next to each other who, by the end of the day, had become best friends.

A concerning observation I made in this election was an increase in intimidation and aggressive conduct at polling locations. It felt like individual candidates lost control of their campaigns, compared to previous elections. Different organisations now do most of the campaigning, compared to the candidates and their own teams in their own communities. I also noticed how the layout of some polling places made those places more overwhelming, especially for people who are neurodivergent, and increased the amount of aggression between volunteers and voters. An example of this was the Ryde prepolling location, which I mention in my written submission. It was set up in a way where you had people facing off each other and one queue, with one way in and out. People had to go through this queue facing each other along there. AEC volunteers were often left on the frontlines, handling quite aggressive and violent situations, and were often subjected to such abuse as well.

Towards the end of the election campaign, the amount of hatred and negativity had a huge impact on my mental health. I had multiple panic attacks, PTSD flashbacks and other incidents towards the end of the campaign. There were quite a few times when I thought I couldn't re-engage with our electoral system again. For other people I know, they haven't re-engaged since. I also noticed that people who work a considerable distance away from their electorate found the opening hours difficult, and the lack of access to absentee voting during prepolling made it impossible for some people to vote. I believe there need to be significant reforms to how polling places are laid out, better guidance and posters and better hours at polling places, to allow people to still engage with the political system and still get their voices heard but in a safe manner so people don't feel overwhelmed by going to vote.

During the campaign, I made non-partisan content about how to enrol to vote, how the electoral system works and the different methods of voting—postal, prepoll, on the day, absentee—and also interviewed people about their opinions on the election. There was a significant amount of abuse, both online and in person when filming these videos, that was directed towards me and anyone who was interviewed. It's incredibly concerning that even such politically neutral, non-partisan politics—not talking about character or policy but just about how the system works—causes such attacks. I believe there's still a huge gap in how elections are managed on social media, and reform is needed via new legislation.

Another item on the terms of reference was the potential increase in the number of seats, extension of terms and introduction of fixed terms in future elections. As mentioned in my written submission, I agree with all of these suggestions. A four-year fixed term will better align with the existing systems in state and local government; allow for certainty for the public, the media and government officials about when elections will happen; and allow for more time to better examine legislation in the parliament. An increase in the number of members of parliament will allow for better management of constituent cases. But the overall public opinion at the moment has been quite strongly negative towards this. There was a referendum on the extension of terms in the 1980s which was shut down quite quickly, and there are quite a lot of cynical comments that pop up when this topic is mentioned. But, when I explain to people why we need to increase the number of seats and introduce fixed terms, they seem to agree in the end. Once people are given a good rationale for this, the more likely it is that we'll get a good outcome on this.

I'll end my opening statement with a quote from the then US vice-president Richard Nixon during the first 1960 US presidential debate. It was a close election which could have quickly become quite personal and ugly. He ended his opening statement by saying:

> … our disagreement is not about the goals for America but only about the means to reach those goals.

I implore our decision-makers and political candidates here in Australia—our disagreements should not be about the goals of Australia but only the means to reach those goals. Thank you.

CHAIR: Thank you, Mr Hayes. That was very important evidence. Thanks for taking the time to prepare the statement, to write your submission and also to come and give verbal evidence today. I think what you've outlined is my personal greatest fear from what I experienced at the 2025 election, which is that people, for a variety of reasons, won't want to participate in the future. You talked about the need to make voting safer. In your experience—you said you went across many booths. The AEC has a six-metre rule, so did you find that a lot of the aggressive behaviour happened outside the jurisdiction of the six metres that the AEC have—

Mr Hayes: Yes.

CHAIR: Would you think, if the AEC's jurisdiction was extended to the polling place rather than six metres from the door, that would temper some of the aggressive behaviour that you saw?

Mr Hayes: I think, overall, spreading out the amount of volunteers and not having 10 to 15 people all in one spot right at that minimum six-metre radius—having it a bit more spread out would help out quite a bit. So, rather than having everyone be at six metres, standing literally at the line, and the managers having to draw in chalk the six-metre radius and everyone's just there, I think having everybody more spread out would help with that.

CHAIR: There are currently no clear guidelines on behaviour from the AEC. I believe that a lot of established political participants either have guidelines, have training or have been established for so long that there are certain norms. I think you touched on, in your evidence, there being a lot of new entrants to polling place campaigning in terms of volunteers but also signage material. Do you feel like the AEC needs to establish some rules to seek to regulate that behaviour a bit more?

Mr Hayes: I agree with that. As you mentioned—and as I mentioned in the opening statement—there are a lot of new organisations that aren't part of any political parties that have been established recently, and not all of them follow the same guidelines as other established political parties. So having the baseline rules and regulations in regard to behaviour and conduct would definitely be beneficial. Because these other organisations, if they are following good, ethical conduct, can be beneficial to electoral campaigns. But a lot of those organisations just aren't at the moment, so definitely having those baseline regulations—if they're not willing to set up some themselves, then they have to have some rules imposed upon them.

CHAIR: We go through this inquiry and make recommendations. Perhaps the recommendations are adopted, or maybe they're not. You've mentioned your friends and people you know who haven't engaged in politics and perhaps don't want to engage in the next federal election for the reasons you've outlined in your submission. What does the AEC need to do to portray confidence that voting places will be safe in 2028?

Mr Hayes: I think showing transparency would definitely be the best way. What I often explain to people about gaining trust is that trust starts with showing transparency—'We've made these changes.' I follow the AEC on Instagram and they make fantastic content on there about explaining how the system works. Social media is definitely a great way of doing that, once those changes have been implemented. Different community services would also be a great way of showing that those changes have been made. Being transparent will help to gain the trust.

CHAIR: Thank you. Dr Ryan?

Dr RYAN: Hi, I'm from an urban electorate in Melbourne. I'm sorry for what you went through. Unfortunately, it's not unusual. Would it be fair to say that better oversight of the polling places and electoral places would make people feel more safe and less vulnerable, and that one of the things we need to do is just make them much less crowded and overwhelming for voters?

Mr Hayes: Thank you so much, Dr Ryan, for that question. I do agree with that. We have a lot of individual polling place managers, and I think that they would be able to help with that. Especially for volunteers, I'd also suggest hidden disability training. There are quite a few organisations available that do a lot of work training volunteers and organisations on hidden disability recognition. So that would be great, to find different ways to make sure that it's low sensory and to look out for people who might just need a little bit of extra help to go through the electoral process. I think it would help a lot of people. One in five people in Australia has some form of disability and it would help a lot of people to be able to engage in our electoral system.

Dr RYAN: When you go to the footy or something, there are spaces where people can go if they get a bit overwhelmed from a sensory point of view. Do you think it would be worth us considering having some polling sites that are set up specifically with that need in mind?

I know the idea is that all polling sites should be available and suitable for everybody, but given the concerns that you've described, certainly in an urban setting, it might be possible for us to have times of the day where the rules might be a bit different and things might be a little less overwhelming for people who are at risk of sensory overload.

Mr Hayes: I'm guessing you're talking about quiet rooms or sensory rooms?

Dr RYAN: Yes, exactly.

Mr Hayes: I think that would be a great idea to have, as well as having times during prepolling and on the day where everything's a bit quieter. There are a lot of different organisations, like Westfield and Woolworths, that have times where they purposely keep everything low sensory. A lot of the theatres around here in Sydney have

performances and stuff like that where they keep things low sensory. I think we could have times where you have fewer volunteers there and the queue is not as busy—quieter times where we can recommend that people come on over to the polling booths during those times. That could be beneficial.

Dr RYAN: Thank you. I have no more questions.

CHAIR: We really appreciate your evidence. Thanks, Mr Hayes. I call Sue Bolton. Although the committee does not require you to give evidence under oath, I should advise participants that this hearing is a legal proceeding of the parliament and therefore has the same standing as proceedings of the respective houses. The giving of false or misleading evidence is a serious matter and may be regarded as a contempt of parliament. The evidence given today will be recorded by Hansard and attracts parliamentary privilege. I now welcome you to give evidence today.

Ms Bolton: I was a first-time volunteer this year for the federal election for my local member in Reid. As a first timer, I was mostly pretty pleased. I did a fair bit of volunteer work leading up to the election day—doorknocking, handing out pamphlets. I had a good time. I even did prepolls with some of the Liberals and Greens and other parties. It was quite pleasant until it got to be a prepoll day at one of the bigger venues. I was absolutely amazed at the behaviour of a number of volunteers who were there. We had a ratio of probably three to one dressed in Liberal Party clothes. But it turned out later, I was told, that it was the Exclusive Brethren, who were there en masse. It was interesting because most of them were men, and that became a real issue for a lot of the voters who were going through the gauntlet. It was quite threatening. A number of women, particularly, made comment. One of the male voters came back and told everybody off for yelling, abusing and basically berating voters as they went through the gauntlet, as I will call it.

I then had a personal experience when I went to dress one of the schools before the election, where, I think, there were five or six Brethren to two of us, who were dressing this school. One of them actually fronted me and came quite close to me. I felt quite threatened, and I just suggested that, if he didn't walk away, I would call the police if he tried to touch me or push me. Also, on the actual election day, I was a team leader and we again had a ratio of about three to one of mostly men, who I found out later were Brethren. There were some Liberal Party members there, who were lovely and very welcoming. They didn't seem to know where these people had come from or why they were there, so that was interesting.

I guess, from a democratic point of view, the thing that struck me was the amount of resources that were brought to play in the Reid area from Brethren particularly, who had rolled out all these posters, flyers and banners en masse. It was even to the extent that I had a voter come up to me at my booth saying, 'How come your member doesn't have any flyers and things here?' and I was saying, 'We don't have the resources.' So I think the resources are an issue and whether that was transparent. I think transparency in our democracy is absolutely critical, particularly in this age where we know a lot of younger voters are becoming disenfranchised and disillusioned with institutions. So there were a number of those issues.

The other thing that struck me was that an organisation who don't necessarily have to vote and who choose not to vote were brought out in such mass numbers. I believe the *Herald* said it was 15,000 throughout the country. It just seemed phenomenal that people who don't want to participate in democracy came out on the day. One would have to ask why. What's in it for them to actually do this to that extent?

I would like to end on a positive, to say that it was mostly a good experience. I felt collegiate with most of the Liberals, Greens and minor parties that were in most of the booths when I was doing prepoll. But I was pretty gobsmacked at the way these people behaved and the amount of power and money that was brought to the fore. That was all I had to say, really.

CHAIR: Thanks, Ms Bolton. I think you've outlined the impact it had on you, and you mentioned some of the voters, particularly women. And you may have heard the evidence we've just received. My concern is that the escalation of behaviour that we saw in 2025 will lead to people disengaging from our democracy. Is that the impression you got from people who went into booths like this—ran the gauntlet, as you said? Did you speak to any voters during your time volunteering afterwards? What taste did this leave?

Ms Bolton: I can't talk about many of them, because I didn't get to talk to many.

CHAIR: Yes, sure.

Ms Bolton: But there were certainly a couple that I saw were being intimidated. I could see that they were feeling intimidated, particularly young people. A couple came up to me and made comment that they've never had this happen before and asked, 'What's going on?' I kind of wondered that myself. Having never been involved in this before, I wondered whether this was different, and my colleagues who were there were saying, 'Yes, this is very different.' I don't know why it was so different this election. But I would argue that we know, just from the

stats, that people aren't voting as much as they were. I think it used to be 96 or 97 per cent, and it's down to just over 90. I worry that with social media and all the rest of it people are backing out, and if they see this type of behaviour it would only add to that feeling of, 'Why would I bother doing this?'

CHAIR: You mentioned the scale of the Brethren's involvement—power and money, the numbers of people there. You also mentioned transparency. Is that level of involvement by a third party something that should be declared, in your opinion?

Ms Bolton: Absolutely. I think it goes across all support groups. Everybody should be declaring. For me it was the first time I was exposed to this. I've voted in many elections. I'm 63 years old. But I've never seen this behaviour. I've never seen this type of thing in my electorate. I've lived there for 25 years. I've never seen this type of inundation. And I think it wasn't necessarily very transparent. Whenever you would talk to the people—and I did talk to a few of these people, because I found it really interesting—if you asked, 'Where do you live?' they'd say, 'None of your business.' If you asked, 'Where do you go for coffee?' they'd say, 'Oh, just around the corner.' If you asked, 'What's the name of the cafe?' they just didn't know the area. They were brought in. There was no connection to our community. And that's okay. I get that volunteers can work across areas. But it just seemed very deceitful.

When I read the articles in the *Herald* there didn't seem to be any responsibility taken as to who had organised it or how much money they had put into it. There wasn't any transparency. And I don't know whether that's happened at a higher level.

CHAIR: From what I can see, and I could be wrong, they haven't registered as a significant third party, a third party or an associated entity. Is that something you feel should be captured—at that scale? I don't mean one or two people, but the scale you described.

Ms Bolton: Absolutely. That's right. And I think it's the scale at which is happened that really bothered me. We're all individual volunteers, and we can all represent trade unions or minor parties et cetera. But the fact that there were so many not-voting members of our community who were brought out in such numbers really bothered me, yes. And I think when there is no transparency that becomes an issue. I'm a bit concerned about that from a democratic—

CHAIR: Do you have any idea why they were brought to Reid?

Ms Bolton: When I talked to a few of them they were saying, 'We don't want the Labor Party back in; we want the Liberal Party in.' I don't know. I can't tell you. It bothered me and it surprised me as to why they were brought in and why at this election. So I'm not sure. It comes back to that point: what's in it for them? They're a non-voting body, and they were brought in in such numbers. What were they trying to achieve? I don't know, and that bothers me.

CHAIR: Do you have an impression that they were directed to attend?

Ms Bolton: They were actually given leave. In fact, I heard from my partner—he mentioned that he spoke to one of them, and they were given leave from their work to do this, and I believe they were paid while they were 'on leave'.

CHAIR: So they were on paid leave to do that?

Ms Bolton: Yes. There were a lot of men there who, I guess, normally would have been at work. There were not many women—only young women—who were allowed to come. For that many people to be given that much leave, I'm surprised as to why they would do that.

CHAIR: Thank you very much, Ms Bolton.

Our next witness has requested to give evidence anonymously. Their evidence will be broadcast and entered in *Hansard*. I am, however, directing those present here today that no photos, videos or other recordings may be taken for the duration of this witness's evidence. Failure to comply with this direction may be found to be a contempt of parliament. Witness 2, could you please state the capacity in which you appear today.

Witness 2: In the 2025 election, I was the second in charge at our Parramatta prepolling station. I think we were open for about 12 days there.

CHAIR: I now invite you to give a statement, and then we might proceed to questions.

Witness 2: I'll start with my experience in working through the polls. I've worked at polling since the late eighties. I think 1988 was the first one. Let's get down to the current one, working at the Parramatta polling station. I can tell you that at the start of the day—all well. You've got to give all the various parties credit for the effort put in, setting up all of their propaganda per se. Without a crowd, their conduct was absolutely amicable between them all.

But the venue itself brought its own challenges, and those challenges were that there was a—I was going to use the words 'kill box', or gauntlet. The public was forced to run the gauntlet because we had this funnelling situation where all of the spruikers from all sides would be there, talking themselves up into a frenzy at stages. I think that's probably part of the issues that young Mr Hayes brought up earlier. These things do get out of hand.

We would, working in the polling booth itself, be coming out and getting everybody to tone it down, but we have only a certain level of jurisdiction. I think you brought up our six-metre rule. Beyond there, we don't have jurisdiction. I would put forward that a recommendation be laid out to the AEC—and whoever rewrites the act that supports that—that we get control over the premises from the property entry line. That way we can keep it to a reasonable congestion. That would have to be on a venue-by-venue basis. In that situation, there would be consultation and involvement with the candidates themselves, to go: 'These are the rules. This is the venue. This is the way the game is going to play.' That way everybody knows the rules, knows where the boundary line is and knows who has control from that point on.

The candidates themselves were well behaved on that front. Whenever we tried to bring the issues to their attention, they would as the team leader, let's say, try and quell things, yes. But when they're not present—as I said, the crowd talks itself into a frenzy.

We had various members of the public with, let's say, the most incredible disabilities: the deaf, the blind, the aged, the infirm—you name it. Everybody came through. The facility met their needs. We even had opportunities to go out to the street and assist voters. So that part of the process is fine. It's more venue based. With the right venue and the right management over such venues, I think we'll get a better experience at the public level.

There's probably not a lot more I can add to that. I'm open to questions, though.

CHAIR: Thank you. In my experience of being on booths for a while, gauntlets are sometimes created through signage.

Witness 2: Yes.

CHAIR: People put up signs, so people are funnelled through. There is also the sheer number. You can create a gauntlet with 30 volunteers, for example, which you can't do with two or three.

Witness 2: Yes.

CHAIR: Obviously, as you said, that varies from location to location. It's been recommended to us through some of the evidence we've received that, to take some of the heat and competition out of it, some regulation should be in place about the amount of signage and the location of some of it. Is that something that you feel would have an impact on people whipping themselves up into a frenzy, as you said?

Witness 2: Yes, more of that 'fair play' type rule.

CHAIR: Yes. Did you get some of that feedback from voters in the booth? Were they coming in and saying what a poor experience it was out the front?

Witness 2: Yes. They actually came in and told us they were being jostled, effectively, as they came through this gauntlet. But that venue itself, just layout wise, gives rise to it. So, as I said, it is unique to the venue. We were covering five different electorates at that polling station, which means, on average, 1,400 to 1,800 punters a day would be passing through with peak load times. When the tide was out, it was fantastic. When everybody was coming in, we had hundreds of people in the queue, and that queue snaked out through the gauntlet.

I can say that people have been referred to as volunteers. Not everyone that was handing out the brochures was a volunteer. Some were paid, and those paid were probably, let's say, earning their keep by raising their voices and being more boisterous than others. It seems like we've lost a little bit of the civility that we want.

CHAIR: Yes. You're saying you've done this for a while.

Witness 2: Yes.

CHAIR: What was it about 2025 that made it different?

Witness 2: For me, the venue. I hadn't seen such a congested pinch point previously. Usually I've worked at the local church or a school building, where that wasn't present. As I said, there were five different seats at the one venue, and, just layout wise, it didn't lend itself to it.

CHAIR: We've had evidence—and you've suggested this—about extending the jurisdiction out. I just want to dive into the detail of that a bit. The current six-metre rule is that there can be no campaign presence, no signage and even no sound travelling into the polling booth or within that six metres. Is it a matter of just extending that or creating something like a red zone, an orange zone and a green zone to say, 'You can have some activity in

between six and 20 metres and then whatever activity you like after that'? If you just extend the red zone out to 20 metres then that might have a totally different impact on the voting experience altogether. Would you consider—

Witness 2: Yes. Again, the voting process itself is a spectacle. You used to go down to the school fete, cast your vote and have the democracy sausage.

CHAIR: Yes, sure.

Witness 2: It was that kind of thing. It's great to have, effectively, that spectacle take place. This is why I say that venue-specific layouts need to be agreed. Then, as I said, there needs to be that consultation process that engages with the parties and all of the candidates: 'If you're going to put your placard up and you're on the vote there, okay, you're involved in this process. You know what the rules are.' And it should be each venue to itself.

CHAIR: We've had a recommendation that, to temper some of the behaviour, the AEC should have an established code of conduct—that is, as scrutineers need to register, booth leaders, booth captains or booth volunteers should register, to prove that they've read and agree with the code of conduct. Do you think that treatment would assist in overcoming some of the challenges you've identified?

Witness 2: I think that's a bit of overreach, to be honest. The reason I say that is you've got the red team, the blue team, the orange team and the green team, and nothing's stopping them from throwing on one of those T-shirts of that colour and standing amongst the crowd, talking the noise up and bringing forward their possibly personal point of view which may not be the view of the party or the candidate they're supposedly representing. Those misrepresentations lend themselves to that colour identification. Registration isn't going to help because you're not going to be able to pick out who's legit and who's not, which one's counterfeit—I can't tell.

CHAIR: That's a good perspective. Thank you very much.

Ms Duloy, I now invite you to deliver a short statement and we'll ask some questions.

Ms Duloy: I was a volunteer campaigner in the 2025 election for Labor in the seat of Bennelong—as you know! I have actively participated as a volunteer in elections for about 10 years and have voted in many elections prior to that over the last 40-odd years.

Elections in Australia usually have a nice community atmosphere. I've been the booth captain at my local school for lots of elections. Like a lot of local schools, the P&C put on a fete with cake stalls, the mandatory democracy sausage and so on. The atmosphere is usually cordial, with voters and campaigners all feeling they're doing their bit for democracy. Usually, we get on reasonably well with the campaigners for the other candidates; there'll be some banter between campaigners and occasionally the odd bit of sledging, but it's usually not aggressive and it's usually not over a prolonged period. But the 2025 election campaign was different and changed all that.

I worked on two different pre-poll stations and also on election day, and these polling booths were overwhelmed by a sea of candidates in blue T-shirts. There could have been up to 30 or 40 of them lining the path to the entry to the polling station, whereas we had more than half a dozen volunteers. I understand now that many of these volunteers were from the Brethren, and they were recognisable by the uniform worn by the women, which was a black netball skirt over black leggings—although, in saying that, the volunteers were mainly men. Apart from the sheer volume of them, their behaviour was unacceptable. Those that engaged in loud, aggressive chanting and jeering often pointed to female volunteers. They would aggressively thrust their how-to-vote material in voters' hands, often getting them to take several copies so that they then wouldn't have any room in their hands for anyone else's campaign material. They would physically block and jostle other campaigners, and they'd also speak loudly and aggressively right next to you so you couldn't talk to voters.

I'll give you a couple of examples. On one occasion on pre-poll, a tall young man was following me around. I heard someone else saying it was like being on a basketball court; it was exactly like that. He was playing defence and stopping me from handing my material out to voters as they came along. When I moved to another part of the polling booth, he followed me and kept on doing that. Finally, I said to him: 'Can you please back off? We're not on a basketball court now.' A couple of people around me laughed at that, and I think that made him embarrassed and he moved off, but it took me saying that to him for him to move off.

Another time, I was standing right on the edge of the line, next to the exclusion line, and I was jostled over the edge just as an AEC person came along, and then they said, 'Oh, she's over the exclusion line!' kind of thing. Luckily, the AEC person saw that I'd been pushed and told the man who had done it to move back and make space for me. So those are just a couple of small examples.

I guess what I'm really concerned about is not so much the effect on me but the effect on voters. I saw many voters who were really upset by the intimidating behaviour, particularly the elderly, neurodiverse people and

people with disabilities. I saw people turn away when faced with a crowd of blue-shirted male volunteers. A couple said things like, 'I really just can't handle this. It's just too much.' I saw a woman with a child who appeared to have some kind of neurodiversity, and the child got really overstimulated and upset and the woman had to leave—and she was quite upset too, because she didn't get to vote that day.

Pre-poll is often a quiet time. In previous elections, it has been a quiet time where people who have difficulty standing in a queue for a long time can vote a lot more comfortably than if they go on election day, but of course it didn't turn out that way this time because of the sheer numbers of campaigners there.

The AEC did their best, but they couldn't really police this behaviour, and they don't really have jurisdiction outside the six-metre exclusion zone. Even then, they had difficulty getting people to obey their instructions. On election day, I saw a candidate walk with voters right up to the door of the polling station, several times, even though the AEC requested him not to do that.

I find it really hypocritical that a religion that discourages its own congregation from voting should seek to influence a political outcome. The Brethren campaigners had really little knowledge of voting procedures. They often would say to people that they needed to number the top six boxes, without saying which ballot paper they were referring to, and, in Bennelong, where there were eight candidates, if you had numbered only the top six boxes, that would have been an invalid vote. In fact, when I was scrutineering, I saw lots of votes in that category, and a lot of them were attempts to vote for the Liberal candidate.

In my submissions I made some suggestions, and a couple of these have been reflected in comments this afternoon. Some supermarkets and other organisations have quiet periods for people who struggle with sensory overload. I was wondering whether the AEC could introduce a similar concept during pre-poll, with limited numbers of campaigners and appropriately trained staff. My interest in this is that we're blessed in our family with a number of beautiful, neurodiverse human beings, and I am really concerned about their ability to engage with the electoral process. Some witnesses have also suggested limits on campaigner numbers at all times, which I would also support.

There should be clearer offences for breaching electoral rules, including the rule against intimidation, and the ability to eject volunteers or candidates who are serious or repeat offenders. I'm not sure who should be responsible for policing. I understand that the AEC needs to be independent and politically neutral. Whether it's the AEC or closer engagement with the police, I think there needs to be certain norms of conduct that can be enforced.

That's the end of my statement. Thanks for the opportunity to speak. I'm happy to take questions.

CHAIR: Thank you, Ms Duloy, for your evidence today. You mentioned you were being followed, jostled and pushed, and we've heard evidence from others that, usually, campaigning of this nature was particularly an issue and directed in some instances to female volunteers. Was that your experience—that this kind of aggressive behaviour was more likely to happen to a female volunteer or participant?

Ms Duloy: Yes, very much so, and in fact, when there were only women on the booth, they behaved a lot worse than if one of our male volunteers would come along. One of our volunteers was there nearly every day on the prepoll in Ryde. They called her 'the bitch' and would say, 'There's the bitch,' regularly, so they were using very gendered language about her. That was really distressing. It was very much, I thought—

CHAIR: What impact do you think that would have on volunteers? You've said you've done this for 20 years. You may have built up a resilience to this, but we just heard evidence from a first-time volunteer. Do you think people would be less likely to participate in future if this aggressiveness weren't dealt with at future elections?

Ms Duloy: I think people would be put off, yes. I think some people would be put off. There are probably some people, like me, who would be even more determined to come back and play their part, but I think some people, yes, would definitely be put off. Even in a normal election cycle, it's not easy being a volunteer. It's a long day on your feet. You're dealing sometimes with difficult personalities and so on. I'm not trying to make out that everything prior to 2025 was really fantastic, but this just made it so much harder for volunteers.

CHAIR: Were you under the impression that the scale of the presence of the Brethren was something coordinated with the Liberal Party?

Ms Duloy: It was certainly coordinated. I know that the Brethren have made statements to say that it wasn't the case; it was just individual members of their congregation and their choices, but I find that really stretches credulity. Anyone who's worked on an election campaign knows how it can be quite a challenge to fill a booth on election day or another day with sufficient volunteers, so to get 20 of them turning up—and they all know each other, and it's not like they all turned up and said, 'Oh, gee, fancy that, meeting you here.' They obviously had planned to be there together, and they had designated roles. There was a team leader, who was not the booth

captain but a team leader of the Brethren. He—it was always a he—would be directing them on where to stand, what to say and what to do, and he'd be sending them off with their coffee runs and their catering and all of that kind of thing. So there was definitely evidence to me of a very well run and coordinated effort that was not just individuals turning up on the day.

CHAIR: You mentioned that there are certain norms that need to be enforced. Currently, the AEC don't have established norms. I think we heard from New South Wales Labor earlier that there are long-term participants. There are some non-codified rules around campaigning that new participants are either ignoring or don't know about. Do you think that, at a future election, there should be some sort of established guidelines from the AEC for volunteers, third parties and political participants to adhere to?

Ms Duloy: Yes, I think so. The Labor Party has its own code of conduct, which covers volunteers as well as members and elected representatives and everyone who's involved with the Labor Party. I assume that the Liberal Party has something similar, but it obviously wasn't being followed. In my view, it wasn't being followed. Yes, I think it would be helpful. It should outline that volunteers need to behave in a respectful manner and not harass people or intimidate people—the kind of thing that's already in our code of conduct.

CHAIR: Do you think volunteers have a responsibility to provide a safe voting place for voters? They've got a responsibility to canvass. Do you think that responsibility should extend to make the place safe as well?

Ms Duloy: Yes, I do think so. I also think candidates and parties have a responsibility to make sure that those volunteers are following those sorts of norms.

CHAIR: Does anyone online want to ask a question?

Dr RYAN: Thanks for your evidence that you've given us this afternoon. Would you say that some of the individuals who were supporting the Liberal Party who you've identified as being from the Brethren were minors?

Ms Duloy: Did you say 'were minors'?

Dr RYAN: As in children, not as in people who go down mines.

Ms Duloy: There were some who were probably in high school—not young children, but high-school students. We saw them not so much on polling day and at polling stations, but on street stalls. I'd say the majority of them were of voting age. The majority of them were young men in their 20s, with some middle-aged men kind of running the show.

Dr RYAN: The argument can be made by the Liberal Party—and it's already being made by people who've appeared in front of this committee—that you can't exclude people from the political process on the basis of their religious affiliation. What do you say to that?

Ms Duloy: That's absolutely correct, and I'd certainly support people of all backgrounds, religions and ethnicities et cetera participating to the fullest extent in our democratic process. My concern is the numbers in which they turned up, their behaviour and the lack of transparency, because other people involved in the political process, even third-party organisations, are actually registered as campaigners; but these people were not. So it's those issues that concern me about it, not the fact that they are from a particular religion.

Dr RYAN: Thank you very much. I have no more questions.

CHAIR: Thanks, Ms Duloy. I now welcome Mr Alex Hemmer. Mr Hemmer, did you hear my statement at the start about giving evidence under oath?

Mr Hemmer: Yes. I haven't got a statement. I'm just here to answer your questions, essentially. I've just listened to other's stories about the last federal election. I'm a branch secretary in the electorate of Greenway, and I've been involved with many campaigns in the past, since 2016. This last campaign was one of the more extraordinary campaigns that I've been a part of. I saw an enormous amount of resources being thrown at Greenway, in terms of corflutes and volunteers. We were typically outnumbered—as in the Labour Party versus Liberal volunteers—six to one at any one time. On election day, on every booth there were 10 or 15 volunteers to our one Labor volunteer.

I found it to be not so much intimidating but really just embarrassing, to be a part of that. There were a lot of voters that came in who were quite disgusted by the amount of corflute material that was around. We obviously didn't have anywhere near as much corflute material at polling booths.

As some of the other witnesses described, it was really intimidating for a lot of voters, especially on prepoll; prepoll's normally quite sedate. We had quite a few near-violent run-ins with some of their volunteers. I have to say I didn't have that many Exclusive Brethren volunteers. I did find out that all of the volunteers that I was dealing with were paid volunteers if they weren't direct friends or acquaintances of the candidate. Everyone that I

spoke to asked, 'Are you being paid to be here?' They'd brag about how much they were getting paid. That was interesting. I could keep going on. What other questions do you have?

CHAIR: You said you felt quite embarrassed. What do you think the community expectation is when they go to vote? Let's try and get that in evidence.

Mr Hemmer: I've seen the amount of resources being thrown at these elections increase over time. And it's becoming like a real circus. I find it quite embarrassing that it just takes so much time and resources just to set up a booth. There's constant competition between Liberal and Labor, where we're constantly fighting each other over who can have as many corflutes and who can have as many A-frames. It's just become an absolute farce. There need to be some restrictions put in place by the AEC to just limit the amount of campaign material at a booth and the number of volunteers. It was described previously: there were so many, especially aggressive male volunteers on the Liberal side, who were just there to intimidate people. They were just there to be loud and brash and to talk over people. They were just there for numbers, really.

CHAIR: Do you think taking that heat out of the booth set-up, the signage—reducing the intensity around that through regulation—would help temper the behaviour and therefore improve voter experience?

Mr Hemmer: Yes, absolutely. It's almost like a sporting event. Things get really, really heated, especially if you've been standing there all day and people are getting quite frustrated. There's obviously a lot of sledging going on, and often it's in good humour. That makes the day interesting to a certain degree. It's just having a bit of banter between you and other volunteers, who are usually quite collegial, but in this instance they really were just aggressive. There were a few that you got along with, but most of them were just there to be—first of all, they were getting paid. They didn't know anything about the political candidate; they didn't know anything about the political process. They would get quite heated.

I could describe an interaction that I had with one of them, who was actually the son of the candidate that ran for Greenway. I was on prepoll—this was on a weekend prepoll, I believe—and I was going between booths, wherever I was needed to fill gaps. I went to one particular booth, and, as I left another booth, while I was in transit, the police were actually called to the other booth because the candidate—or the husband of the candidate—was encroaching on the six-metre AEC boundary and refused to move on. So they called the police, and they were having ado. Obviously, we have a WhatsApp chat. Everyone's sending photos—'Look what's going on at this booth'—and it was humorous. So I'm showing photos to the Labor volunteers at the booth and then also the Liberal volunteers—'Look what's going on over here.'

The son of the candidate then got very, very heated and very angry at me for showing those photos to people. He stormed off. He then proceeded to come back with three or four other, large, blue-shirted volunteers, camera in hand, filming me—with his phone in my face—and accusing me of showing photos to young female candidates on my phone, within earshot of a couple of hundred voters who were lining up to vote. I'm standing there, thinking: 'What do I do in this situation? This is being filmed. It's going straight online.' There were instances, previously, where they had filmed our volunteers, put it into private WhatsApp chats and also shared it on TikTok or wherever, accusing us of improper behaviour. This was a situation where I was just completely blindsided.

CHAIR: How important do you think it is for this committee to make some recommendations to try and regulate this behaviour or to make booths safer for volunteers and safer for voters?

Mr Hemmer: I think it's a case of just reigning it in. That's really all it is. If there's no regulation, if there are no rules, it's just a free for all. You can really have somebody who can come along and throw all the resources in the world at it, and it becomes a circus. What I would recommend is that there's some form of regulation that limits this.

CHAIR: There are expenditure caps coming in. Do you think that would have made a difference in what you saw? I'm not saying you would know exactly how much people spent, but do you think limiting the amount of financial influence there is on seats and elections will help?

Mr Hemmer: Yes, it would. It depends on how those rules are applied, really, because this was an instance where we believe that the candidate themselves was quite well off, so they bankrolled much of it themselves. I don't know whether that's something that can be prevented.

CHAIR: I think expenditure caps per seat are coming in, yes.

Mr Hemmer: It is the case that, at previous elections, I've had people come up to me and say, 'I will vote for whoever has the least amount of signage.' That's something that's happened more than once. People are really quite disgusted by it.

CHAIR: Yes. Any questions online?

Dr RYAN: Thanks for your contribution this afternoon. Why do you think things are so much worse this time than they have been in previous federal elections?

Mr Hemmer: I couldn't really tell you why it was worse. I think it's just been building. Honestly, I think it's just the case that it's been ratcheting up election after election. The social media influence probably plays a role here too. It is the case that people are trying to get outrage content, in a way. Much of the stuff that was quite confronting was volunteers filming other volunteers and accusing them of, say, breaching AEC rules. This was the all Liberal volunteers to Labor volunteers, from what I saw in the Greenway electorate, so I guess they were getting quite a lot of interest and traction online. That definitely plays a role. Everyone has been saying that we are becoming increasingly polarised in a lot of ways. That goes without saying. Whether this was a high-water mark or whether this is a sign of worse things to come, I hope that we can do something about regulating this so it doesn't get any worse.

Dr RYAN: Great. Thanks, Chair.

CHAIR: Thank you, Mr Hemmer. Our final witness today is Dr Graham Robertson. Dr Robertson, did you hear my opening statement about giving evidence under oath?

Dr Robertson: Yes.

CHAIR: Great. I now invite you to deliver a statement before we proceed to questions.

Dr Robertson: I served as a volunteer for the Labor Party for prepoll, just around the corner from here, in front of the Octagon. The atmosphere that was created by walking through a wall of blue, which was outnumbering all the other volunteers, possibly by two to one, was quite intimidating.

We've heard a lot, so I won't repeat the sorts of experiences of other people—I know time's tight. But an instance when I felt particularly personally intimidated was right at the pivot point of entry, where, essentially, you've got a crush of all the volunteers. One of our female volunteers had had enough from the tension and the aggravation. The atmosphere there was too toxic for her, so she stepped aside and I was asked to fill that position, and that 'one moving in, one moving out' was essentially like a rugby scrum. They just shuffled back, and I was physically prevented from doing that, so I just stood as close as I could, hoping to get back into some sort of position.

As it turned out, I was standing just on the six-metre line—not wanting to, but feeling that that was the only position I could get to replace the Labor volunteer who'd just stepped away. At that point, the Liberal candidate, who was just a little bit further up the line, turned around and took a photo of me standing on the six-metre line and pointed that out. It wasn't one of the other volunteers; it was actually the Liberal candidate. That felt very intimidatory to me personally. It was a feeling of, I would say, toxic masculinity for female voters walking past, especially the older and culturally diverse, because, basically, they were all white Anglo males at that point. As we know now, they were Brethren.

I asked a question to ascertain whether they were truly locals and said, 'Okay, what are the local issues that are important to the Liberal Party?' and was told in a very aggressive—I wouldn't say condescending, but quite aggressive—way, 'Oh, this is a federal election. Local issues don't matter.' Of course, that was a smokescreen for, essentially, someone who didn't come from the area, which I thought was quite interesting.

In terms of interaction with voters, one instance in particular struck me in terms of the lack of respect for the voters. A young lady engaged me, in a red T-shirt, and a guy, in a blue T-shirt, and wanted to ask us about various issues and how we stood on them. It was an okay interaction. Then she said, 'How do you feel about abortion?' and I gave my response. But the volunteer in the blue T-shirt immediately set into a diatribe about it, which I thought was way beyond the bounds to treat a young female—on a particularly sensitive issue.

Keep those sorts of things to yourself, I think, rather than, in a very aggressive way, almost preaching to this young woman. She persisted—I give her credit for that—and kept asking questions and pushing the issue further. But his response was very strong and very forthright, and I thought that was a particularly nasty interaction with someone who just wanted to know what the Liberal Party stood for and what the Labor Party stood for. I thought that was an interesting interaction. And, as soon as I found out it was the Exclusive Brethren, it all fit. At that point, I didn't know.

For some of the experiences I've had, I've felt that the sheer number and behaviour were intimidatory and overwhelming. And, especially at certain times of the day—when the crush came on and the queue built—I felt very sorry for a lot of older Chinese ladies, Indian ladies and different ethnicities. They'd go to enter and it would not be a pleasant atmosphere. This totally contrasted with—I was booth captain on a smaller local neighbourhood booth. That was a very relaxed and very interactive experience with the volunteers from the Liberal Party. It was totally different. That said to me that something else was going on.

What I did also notice was that it was unquestionably coordinated. They weren't individuals, or it wasn't ones and twos turning up. It was essentially changing shifts. A certain time would come during the day and six would walk up. For individual volunteers, that usually doesn't happen, or it might be one or two. You really felt that it was a changing of the shift, so that was coordinated. Undoubtedly.

CHAIR: Thanks, Dr Robertson. On the coordination, the change of shift, do you have any knowledge of whether or not Brethren volunteers were directed to be there? We heard someone say before that—

Dr Robertson: I felt that. Very much so.

CHAIR: What gave you that impression?

Dr Robertson: They all knew each other. It was quite a close-knit group. And they had what looked like, I suppose, their leaders as well, who were essentially calling the shots. I know that, of course, you have booth captains. The Liberal booth captain and the Labor booth captain were doing what they should be doing in coordinating things. But you could see that there was an orchestrated sort of movement of them coming and going, and also how they interacted with the public.

CHAIR: So you're saying that the Liberal booth captain and the Brethren group were acting separately—

Dr Robertson: Yes.

CHAIR: and they weren't at the booth level?

Dr Robertson: Yes. I mean they might've been, but you could see a more senior—who we understand now was Exclusive Brethren—would essentially call the shots down at the street level. Of course, communication goes on. But I really felt that it was a coordinated effort.

CHAIR: How important is it for us to address this behaviour for future elections?

Dr Robertson: I think the atmosphere that was created at times was not a healthy atmosphere and was not a relaxed atmosphere. How to regulate it in the future—I think transparency is an important step forward. If you've got an affiliation that is in some way materially impacting on your decision or your involvement in volunteering, I think that should be disclosed. It's not ever going to be an easy thing to govern. You could obviously come under the radar. But I think a request to disclose, to be transparent, would help.

CHAIR: Thank you very much, Dr Robertson. Thank you, everyone, for your attendance here today.

Committee adjourned at 15:20